# U.S. Treasury Department's Office of Foreign Assets Control ("OFAC") Advisory Notice to Policyholders

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages that are provided for you.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential Declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign Agents;
- Front Organizations
- Terrorists
- Terrorist Organizations; and
- Narcotics Traffickers

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's website – http://www.treas.gov/ofac

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# Notice Of Terrorism Insurance Coverage

You are hereby notified that under the Terrorism Risk Insurance Act, as amended, (the "act"), we must make insurance coverage available for losses resulting from acts of terrorism. As defined in Section 102 (1) of the "act", the term "act of terrorism" means any act or acts that are certified by the Secretary of the Treasury – in consultation with the Secretary of Homeland Security, and the Attorney General of the United States of America – to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy of affect the conduct of the United States Government by coercion.

This Policy includes such damages arising out "acts of terrorism" and is limited by the terms, conditions, exclusions, limits of insurance, and other provisions of the Policy, any quotes or endorsements to the Policy, and any other generally applicable rules of law.

**YOU SHOULD KNOW THAT WHERE COVERAGE IS PROVIDED BY THIS POLICY FOR LOSSES RESULTING FROM "ACTS OF TERRORISM", SUCH LOSSES MAY BE PARTIALLY REIMBURSED BY THE UNITED STATES GOVERNMENT UNDER A FORMULA ESTABLISHED BY FEDERAL LAW. HOWEVER, YOUR POLICY MAY INCLUDE OTHER EXCLUSIONS THAT MAY IMPACT YOUR COVERAGE, SUCH AS AN EXCLUSION FOR NUCLEAR WARFARE EVENTS OR OTHER NUCLEAR EVENTS. UNDER THE FORMULA, THE UNITED STATES GOVERNMENT GENERALLY REIMBURSES 80%, BEGINNING ON JANUARY 1, 2020, OF COVERED "ACTS OF TERRORISM" LOSSES EXCEEDING THE STATUTORILY ESTABLISHED DEDUCTIBLE PAID BY THE INSURANCE COMPANY PROVIDING THE COVERAGE.**

**NO PREMIUM IS CHARGED FOR THIS COVERAGE NOR IS ANY CHARGE MADE FOR THE PORTION OF LOSS THAT MAY BE COVERED BY THE FEDERAL UNITED STATES GOVERNMENT UNDER THE "ACT".**

**FURTHER, YOU SHOULD KNOW THAT THE "ACT", AS AMENDED, CONTAINS A $100 BILLION CAP THAT LIMITS THE UNITED STATES GOVERNMENT REIMBURSEMENT, AS WELL AS INSURERS' LIABILITY FOR LOSSES, RESULTING FROM "ACTS OF TERRORISM" WHEN THE AMOUNT OF SUCH LOSSES IN ANY ONE CALENDAR YEAR EXCEEDS $100 BILLION. IF THE AGGREGATE INSURED LOSSES FOR ALL INSURERS EXCEEDS $100 BILLION, YOUR COVERAGE MAY BE REDUCED.**

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

300 Conshohocken State Rd, Ste 235
West Conshohocken, PA 19428
AM Best Rating: A- VIII

# CLAIMS REPORTING PROCEDURE

Lio Specialty Insurance Company strives to provide quality claims service. In the event of a claim or potential claim, please submit information about the claim immediately to us. Claims must be submitted in writing via the company e-mail or mail to the following:

- Email address: claim@liospecialty.com
- Phone number: 877-546-7155
- Mailing address: LIO Specialty Insurance Company
  Claims Department
  300 Conshohocken State Road Suite 235
  West Conshohocken PA 19428

## FRAUD NOTICE

**NOTICE TO POLICYHOLDERS:** Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals, for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent act, which is a crime, and may subject such person to criminal and civil penalties.

**NOTICE TO ALABAMA POLICYHOLDERS:** Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to restitution, fines, or confinement in prison, or any combination thereof.

**NOTICE TO ARKANSAS, LOUISIANA, RHODE ISLAND, AND WEST VIRGINIA POLICYHOLDERS:** Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

**NOTICE TO CALIFORNIA POLICYHOLDERS:** For your protection California law requires the following to appear on this form: Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

**NOTICE TO COLORADO POLICYHOLDERS:** It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company. Penalties may include imprisonment, fines, denial of insurance, and civil damages. Any insurance company or agent of an insurance company who knowingly provides false, incomplete, or misleading facts or information to a policyholder or claimant for the purpose of defrauding or attempting to defraud the policyholder or claimant with regard to a settlement or award payable from insurance proceeds shall be reported to the Colorado Division of Insurance within the Department of Regulatory Agencies.

**NOTICE TO DISTRICT OF COLUMBIA POLICYHOLDERS:** WARNING: It is a crime to provide false or misleading information to an insurer for the purpose of defrauding the insurer or any other person. Penalties include imprisonment and/or fines. In addition, an insurer may deny insurance benefits if false information materially related to a claim was provided by the applicant.

**NOTICE TO FLORIDA POLICYHOLDERS:** Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim or an application containing any false, incomplete or misleading information is guilty of a felony of the third degree.

**NOTICE TO KANSAS POLICYHOLDERS:** Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information commits a fraudulent insurance act.

300 Conshohocken State Rd, Ste 235
West Conshohocken, PA 19428
AM Best Rating: A- VIII

**NOTICE TO KENTUCKY POLICYHOLDERS:** Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance containing any materially false information commits a fraudulent insurance act, which is a crime.

**NOTICE TO MAINE POLICYHOLDERS:** It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties may include imprisonment, fines or a denial of insurance benefits.

**NOTICE TO MARYLAND POLICYHOLDERS:** Any person who knowingly or willfully presents a false or fraudulent claim for payment of a loss or benefit or who knowingly or willfully presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

**NOTICE TO MINNESOTA POLICYHOLDERS:** A person who files a claim with intent to defraud or helps commit a fraud against an insurer is guilty of a crime.

**NOTICE TO NEW JERSEY POLICYHOLDERS:** Any person who knowingly files a statement of claim containing any false or misleading information is subject to criminal and civil penalties.

**NOTICE TO NEW MEXICO POLICYHOLDERS:** Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to civil fines and criminal penalties.

**NOTICE TO NEW YORK POLICYHOLDERS:** Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the stated value of the claim for each such violation.

**FIRE:** Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance containing any false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime.

**NOTICE TO OHIO POLICYHOLDERS:** Any person who, with intent to defraud or knowing that he is facilitating a fraud against an insurer, submits an application or files a claim containing a false or deceptive statement is guilty of insurance fraud.

**NOTICE TO OKLAHOMA POLICYHOLDERS:** WARNING: Any person who knowingly, and with intent to injure, defraud or deceive any insurer, makes any claim for the proceeds of an insurance policy containing any false, incomplete or misleading information is guilty of a felony.

**NOTICE TO OREGON POLICYHOLDERS:** Any person who knowingly and with intent to defraud an insurance company files a claim containing any materially false information may be subject to prosecution for insurance fraud.

**NOTICE TO PENNSYLVANIA POLICYHOLDERS:** Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties.

**NOTICE TO TENNESSEE, VIRGINIA AND WASHINGTON POLICYHOLDERS:** It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties include imprisonment, fines and denial of insurance benefits.

**NOTICE TO VERMONT POLICYHOLDERS:** Any person who knowingly presents a false statement in an application for insurance may be guilty of a criminal offense and subject to penalties under state law.

# TEXAS SURPLUS LINES INSURANCE NOTIFICATION

**This insurance contract is with an insurer not licensed to transact insurance in this state and is issued and delivered as surplus line coverage under the Texas insurance statutes. The Texas Department of Insurance does not audit the finances or review the solvency of the surplus lines insurer providing this coverage, and the insurer is not a member of the property and casualty insurance guaranty association created under Chapter 462, Insurance Code. Chapter 225, Insurance Code, requires payment of a (insert appropriate tax rate) percent tax on gross premium.**

Figure: 28 TAC §1.601(a)(2)(B)

## Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company or HMO first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company or HMO. If you don't, you may lose your right to appeal.

### LIO Specialty Insurance Company

To get information or file a complaint with your insurance company or HMO:

**Call: Claims Department at 877-546-7155**

**Toll-free: 1-877-546-7155**

**Online:** https://liospecialty.com

**Email:** claim@liospecialty.com

**Mail:** 300 Conshohocken State Rd, Suite 235
Conshohocken, PA 19428

### The Texas Department of Insurance

To get help with an insurance question or file a complaint with the state:

Call with a question: 1-800-252-3439
File a complaint: www.tdi.texas.gov
Email: ConsumerProtection@tdi.texas.gov
Mail: MC 111-1A, P.O. Box 149091, Austin, TX 78714-9091

## ¿Tiene una queja o necesita ayuda?

Si tiene un problema con una reclamación o con su prima de seguro, llame primero a su compañía de seguros o HMO. Si no puede resolver el problema, es posible que el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés) pueda ayudar.

Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas o de apelaciones de su compañía de seguros o HMO. Si no lo hace, podría perder su derecho para apelar.

### LIO Specialty Insurance Company

Para obtener información o para presentar una queja ante su compañía de seguros o Para o HMO:

**Llame a: Claims Department 877-546-7155**

**Teléfono gratuito: 1-877-546-7155**

**En línea**: https://liospecialty.com

**Correo electrónico**: claim@liospecialty.com

**Dirección postal**: 300 Conshohocken State Rd, Suite 235
Conshohocken, PA 19428

### El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros o para presentar una queja ante el estado:

Llame con sus preguntas al: 1-800-252-3439 Presente una
queja en: www.tdi.texas.gov
Dirección postal: MC 111-1A, P.O. Box 149091, Austin, TX 78714-9091

300 Conshohocken State Rd, Ste 2
West Conshohocken, PA 19428
AM Best Rating: A- VIII

# Commercial General Liability Declarations

| | |
|---|---|
| **Company:** | |
| **Policy #:** LSIC1100188813-00 | **Producer:** Angelika Gambino |
| **Named Insured:** Cypress Plumbing | **Producer Code:** 109534 |
| **Mailing Address:**<br>16630 Stoneside Dr<br>Houston, TX 77095 | |
| **Policy Period:** From 09/30/2026 to 09/30/2027 at 12:01 A.M. Standard Time at your mailing address shown above | |
| **Business Type:** Corporation | |
| **Description of Operations:** General Contractor and Artisan Contractor | |

**In return for the payment of the premium, and subject to all the terms of this Policy, we agree with you to provide the insurance as stated in this Policy.**

| Limits of Insurance | | |
|---|---|---|
| **General Aggregate Limit:** | $2,000,000 | |
| **Products/Completed Operations Aggregate Limit:** | $2,000,000 | |
| **Each Occurrence Limit:** | $1,000,000 | |
| **Personal and Advertising Injury Limit:** | $1,000,000 | Any One Person or Organization |
| **Damage to Premises Rented to You Limit:** | $100,000 | Any One Premises |
| **Medical Expense Limit:** | $5,000 | Any One Person |

| Deductible |
|---|
| **Refer to Deductible Endorsement.** |

| Classification and Premium | | | | | |
|---|---|---|---|---|---|
| **Class Code** | **Class Description** | **Premium Basis** | **Exposure** | **Rate** | **Premium** |
| 98482 | Plumbing - Commercial or Industrial | Gross Sales | 100,000 | 8.2400 | 2,500 |
| 90000 | General Contractors – Subcontracted Work - Custom Homes | Subcontractor Costs | included | included | included |
| 90005 | General Contractors – Subcontracted Work - Commercial or Industrial | Subcontractor Costs | included | included | included |
| 98483 | Plumbing - Residential | Payroll | included | included | included |

| | |
|---|---|
| **Estimated Policy Term Premium:** | $2,500 |
| **Total Additional Coverages Premium:** | $0 |
| **Terrorism (TRIA):** | $0 |
| **Total Premium:** | $2,500 |

| | |
|---|---|
| **Policy Fee (Fully Earned):** | $0 |

| | |
|---|---|
| **Policy Subject to Audit:** | Yes |
| **Audit Period:** | Policy Term |

# FORMS SCHEDULE

| Form Number | Edition Date | Form Name |
|---|---|---|
| LSIC-1003 | 11 23 | U.S. Treasury Department's Office Of Foreign Assets Control (OFAC) Advisory Notice To Policyholders |
| LSIC-1006 | 11 23 | Notice Of Terrorism Insurance Coverage |
| LSIC-1009 | 05 26 | Claims Reporting Procedure |
| LSIC-1010 | 01 24 | Texas Surplus Lines Insurance Notification |
| LSIC-IL-1040 | 08 25 | Commercial General Liability Declarations |
| LSIC-1000 | 11 23 | Policy Forms and Endorsements Schedule |
| IL 09 85 | 12 20 | Disclosure Pursuant To Terrorism Risk Insurance Act |
| LSIC-1004 | 11 23 | Signature Endorsement |
| LSIC-1005 | 12 24 | Minimum Earned Premium Endorsement |
| LSIC-1007 | 11 23 | Exclusion Of Other Acts Of Terrorism Committed Outside Of The US; Cap On Losses From Certified Acts Of Terrorism |
| LSIC-1008 | 11 23 | Basis Of Premium |
| CG 00 01 | 04 13 | Commercial General Liability Coverage Form |
| CG 20 01 | 04 13 | Primary And Noncontributory - Other Insurance Condition |
| CG 20 10 | 12 19 | Additional Insured - Owners, Lessees Or Contractors - Scheduled Person Or Organization |
| CG 20 37 | 12 19 | Additional Insured - Owners, Lessees Or Contractors - Completed Operations |
| CG 21 47 | 12 07 | Employment-Related Practices Exclusion |
| CG 21 55 | 09 99 | Total Pollution Exclusion With A Hostile Fire Exception |
| CG 21 86 | 12 04 | Exclusion - Exterior Insulation And Finish Systems |
| CG 21 96 | 03 05 | Silica Or Silica-Related Dust Exclusion |
| LSIC-CON-1000 | 11 25 | Additional Exclusions And Limitations - Construction |
| LSIC-IL-1000 | 12 23 | Composite Rate Endorsement |
| LSIC-IL-1008 | 11 23 | Exclusion - Operations Covered By A Dedicated Insurance (Wrap-Up) Program |
| LSIC-IL-1016 | 01 26 | Nuclear Energy Liability Exclusion Endorsement (Broad Form) |
| LSIC-IL-1024 | 11 23 | Notice Of Cancellation To Third Party As Required By Written Contract |
| LSIC-IL-1034 | 11 23 | Exclusion - Punitive Or Exemplary Damages |
| LSIC-IL-1035 | 11 25 | Exclusion - Prior Work |
| LSIC-IL-1044 | 11 25 | Exclusion - Intellectual Property |


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

| Form Number | Edition Date | Form Name |
|---|---|---|
| LSIC-IL-1045 | 11 25 | Absolute Exclusion - Perfluoroalkyl And Polyfluoroalkyl Substances (PFAS) |
| LSIC-IL-1054 | 11 23 | Deductible Endorsement |
| LSIC-IL-1055 | 11 23 | Waiver Of Transfer Of Rights Of Recovery Against Others To Us |
| LSIC-IL-1057 | 10 25 | Common Conditions |
| LSIC-IL-1058 | 11 23 | Exclusion - Cyber Incident, Data Compromise, And Violation Of Laws Related To Personal Or Company Data |
| LSIC-IL-1067 | 11 25 | Exclusion - Breach Of Contract |
| LSIC-IL-1068 | 11 25 | Exclusion - Designated State(s) |
| LSIC-IL-1069 | 11 23 | Exclusion - Open Roof |
| LSIC-IL-1070 | 11 23 | Exclusion - Roofing Membrane, Torch, And Torch Down Operations |
| LSIC-IL-1071 | 11 25 | Exclusion - Snow And Ice Removal |
| LSIC-IL-1073 | 11 25 | Exclusion - Wildfire |
| LSIC-IL-1074 | 11 23 | Exclusion - Work Over Specified Height |
| LSIC-IL-1076 | 11 23 | Exclusion - Tainted Drywall Material |
| LSIC-IL-1089 | 11 23 | Designated Construction Project(s) General Aggregate Limit With Aggregate Cap |
| LSIC-IL-1092 | 04 25 | Amendment - Premium Audit Condition |
| LSIC-IL-1095 | 11 25 | Absolute Exclusion - Auto, Aircraft or Watercraft |
| LSIC-IL-1134 | 02 26 | Exclusion - Specified Ongoing Or Completed Operations |
| LSIC-IL-1154 | 05 25 | Limitation Of Coverage To Scheduled Designated Classes |
| LSIC-IL-1159 | 08 25 | Exclusion - Aircraft Products And Grounding |
| LSIC-IL-1160 | 08 25 | Exclusion - Injury To Worker |
| LSIC-IL-1162 | 08 25 | Amended Deductible - Independent Contractor Or Subcontractor Conditions |
| LSIC-IL-1163 | 11 25 | Exclusion - Personal Occupancy Of Business Location |
| LSIC-IL-1165 | 11 25 | Exclusion - Storage Of Hazardous Materials, Substances, Or Property |
| LSIC-IL-1173 | 10 25 | Exclusion - New Residential Construction With Specified Exceptions |
| LSIC-IL-1197 | 04 26 | Exclusion - Artificial Intelligence |


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**IL 09 85 12 20**

**THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF YOUR POLICY IN RESPONSE TO THE DISCLOSURE REQUIREMENTS OF THE TERRORISM RISK INSURANCE ACT. THIS ENDORSEMENT DOES NOT GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.**

# DISCLOSURE PURSUANT TO TERRORISM RISK INSURANCE ACT

**SCHEDULE**

| **SCHEDULE – PART I** |
|---|
| **Terrorism Premium (Certified Acts)** $0<br>**This premium is the total Certified Acts premium attributable to the following Coverage Part(s), Coverage Form(s) and/or Policy(ies):**<br>LSIC1100188813-00<br><br>**Additional information, if any, concerning the terrorism premium:** |
| **SCHEDULE – PART II** |
| **Federal share of terrorism losses 80 %**<br>(Refer to Paragraph **B.** in this endorsement.) |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations. |

 © Insurance Services Office, Inc., 2020 

**A. Disclosure Of Premium**

In accordance with the federal Terrorism Risk Insurance Act, we are required to provide you with a notice disclosing the portion of your premium, if any, attributable to coverage for terrorist acts certified under the Terrorism Risk Insurance Act. The portion of your premium attributable to such coverage is shown in the Schedule of this endorsement or in the policy Declarations.

**B. Disclosure Of Federal Participation In Payment Of Terrorism Losses**

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals a percentage (as shown in Part **II** of the Schedule of this endorsement or in the policy Declarations) of that portion of the amount of such insured losses that exceeds the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed $100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds $100 billion.

**C. Cap On Insurer Participation In Payment Of Terrorism Losses**

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.


© Insurance Services Office, Inc., 2020

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# Signature Endorsement

This endorsement modifies insurance provided under the following:

**ALL COVERAGE FORMS**

By signing and delivering this Policy to you, we state that this is a valid contract when signed below by our authorized representatives.



CEO



President



Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# Minimum and Deposit Premium Endorsement

This endorsement modifies insurance provided under the following:

**ALL COVERAGE FORMS**

## SCHEDULE

| | | |
|---|---|---|
| **A.** | **Minimum Earned Premium:** | 25% |
| **B.** | **Deposit Premium:** | 100% |
| **C.** | **Minimum Retained Premium** | 100% |

This endorsement sets forth the Minimum Earned Premium, Deposit Premium, and Minimum Retained Premium provisions for this Policy, calculated as follows:

1. **Minimum Earned Premium**

   If this Policy is cancelled either at your request or due to non-payment of premium, we will retain a Minimum Earned Premium or the short rate earned premium, whichever is greater. The Minimum Earned Premium will be calculated by multiplying the total premium shown on the Declarations by the Minimum Earned Premium percentage shown in the Schedule above in item **A.**

2. **Deposit Premium**

   This Policy is subject to a Deposit Premium. The Deposit Premium will be calculated by multiplying the total premium shown on the Declarations by the Deposit Premium percentage shown in the Schedule above in item **B.** The Deposit Premium is the total premium shown on the Declarations plus any premium adjustment by endorsements and additional premium developed by audit.

   At the completion of the audit, if the audit premium is greater than the premium shown in the Declarations, the additional premium is due and payable upon notice to you.

3. **Minimum Retained Premium**

   This Policy is subject to a Minimum Retained Premium. The Minimum Retained Premium will be calculated by multiplying the total premium shown on the Declarations by the Minimum Retained Premium percentage shown in the Schedule above in item **C.** The Minimum Retained Premium is the total premium we will retain regardless of the results of an audit. In the event an audit provides for a return in premium, the total premium retained by us shall not be less Minimum Retained Premium.

4. **Fully Earned Premium**

   The premium of this Policy is fully earned and non-refundable after (12) twelve months from the inception date of this Policy, or the expiration date of this Policy as shown in the Declarations page of this Policy, whichever is earlier.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION OF OTHER ACTS OF TERRORISM COMMITTED OUTSIDE THE UNITED STATES; EXCLUSION OF PUNITIVE DAMAGES AND CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusions are added to the Policy:

This insurance does not apply to:

**1.** "Terrorism"

Any Injury or Damage arising, directly or indirectly, out of an "other act of terrorism" that is committed outside of the United States (including its territories and possessions and Puerto Rico), but within the "coverage territory". However, this exclusion applies only when one or more of the following are attributed to such act:

**a.** The total of insured damage to all types of property exceeds $25,000,000 (valued in U.S. dollars). In determining whether the $25,000,000 threshold is exceeded, we will include all insured damage sustained by property of all persons and entities affected by the terrorism and business interruption losses sustained by owners or occupants of the damaged property. For the purpose of this provision, insured damage means damage that is covered by any insurance plus damage that would be covered by any insurance but for the application of any terrorism exclusions; or

**b.** Fifty or more persons sustain death or serious physical injury. For the purposes of this provision, serious physical injury means:

**(1)** Physical injury that involves a substantial risk of death; or

**(2)** Protracted and obvious physical disfigurement; or

**(3)** Protracted loss of or impairment of the function of a bodily member or organ; or

**c.** The terrorism involves the use, release or escape of nuclear materials, or directly or indirectly results in nuclear reaction or radiation or radioactive contamination; or

**d.** The terrorism is carried out by means of the dispersal or application of pathogenic or poisonous biological or chemical materials; or

**e.** Pathogenic or poisonous biological or chemical materials are released, and it appears that one purpose of the terrorism was to release such materials.

With respect to this exclusion, Paragraphs **1.** and **2.** describe the thresholds used to measure the magnitude of an incident of an "other act of terrorism" and the circumstances in which the threshold will apply for the purpose of determining whether this exclusion will apply to that incident.

**2.** "Terrorism Punitive Damages"


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

Damages arising directly or indirectly, out of a "certified act of terrorism" that are awarded as punitive damages.

**a.** For the purposes of this endorsement, the following definitions are added:

**(1)** For the purposes of this endorsement, any injury or damage means any injury or damage covered under any Policy to which this endorsement is applicable, and includes but is not limited to "bodily injury", "property damage", "personal and advertising injury", personal injury, injury or environmental damage as may be defined in any applicable Coverage Form.

**(2)** "Certified Act of Terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

**(a)** The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act;

**(b)** The act resulted in damage:

**(i)** Within the United States (including its territories and possessions and Puerto Rico); or

**(ii)** Outside of the United States in the case of:

**i.** An air carrier (as defined in Section 40102 of title 49, United States Code) or United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), regardless of where the loss occurs; or

**ii.** The premises of any United States mission; and

**(c)** The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the Policy or affect the conduct of the United States Government by coercion.

**(3)** "Other Act of Terrorism" means a violent act or an act that is dangerous to human life, property or infrastructure that is committed by an individual or individuals and that appears to be part of an effort to coerce a civilian population or to influence the Policy or affect the conduct of any government by coercion, and the act is not a "certified act of terrorism". Multiple incidents of an "other act of terrorism" which occur within a seventy-two hour period and appear to be carried out in concert or to have a related purpose or common leadership shall be considered to be one incident.

The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# BASIS OF PREMIUM

The basis used for determining the premium charge for each classification is indicated in the Classification and Premium scheduled in the Declarations. The definition of each Premium Basis is as follows:

**1.** Area

**a.** Definition

**(1)** The total number of square feet of floor space at the insured premises, computed as follows:

**(a)** For entire buildings, by multiplying the product of the horizontal dimensions of the outside of the outer building walls by the number of floors, including basements but do not use the area of the following:

**(i)** Courts and mezzanine types of floor openings.

**(ii)** Portions of basements or floors where 50% or more of the area is used for shop or storage for building maintenance, dwelling by building maintenance employees, heating units, power plants or air conditioning equipment.

**(b)** For tenants, determine the area they occupy in the same manner as for entire buildings.

**(c)** The rates apply per 1,000 square feet of area.

**2.** Gross Sales or Receipts

**a.** Definition

**(1)** The gross amount charged by the Named Insured, concessionaires of the Named Insured or by others trading under the Insured's name for:

**(a)** All goods or products, sold, or distributed;

**(b)** Operations performed during the policy period;

**(c)** Rentals; and

**(d)** Dues or fees.

**(2)** Gross sales or receipts includes:

**(a)** The following items shall not be deducted from gross sales:

**(i)** Foreign exchange discounts;

**(ii)** Freight allowance to customers;

**(iii)** Total sales of consigned goods and warehouse receipts;

**(iv)** Trade or cash discounts;

**(v)** Bad debts; and

**(vi)** Repossession of items sold on installments (amount actually collected).


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**(3)** Gross sales or receipts does not include:

**(a)** The following items shall be deducted from gross sales:

**(i)** Sales or excise taxes which are collected and submitted to a governmental division;

**(ii)** Credits for repossessed merchandise and products returned;

**(iii)** Allowances for damaged and spoiled goods;

**(iv)** Finance charges for items sold on installments;

**(v)** Freight charges on sales if freight is charged as a separate item on customers invoice;

**(vi)** Royalty income from patent rights or copyrights which are not product sales;

**(vii)** Intercompany sales—sales which are collected by a Named Insured under this Policy from another Named Insured under this Policy.

**3.** Payroll

**a.** Definition

**(1)** Remuneration which includes money or substitutes for money.

**(2)** Payroll includes:

**(a)** Commissions, bonuses, pay for holidays, vacations or periods of illness;

**(b)** Extra pay for overtime

**(c)** Payments by an employer or amounts otherwise required by law to be paid by "employees" to statutory insurance or pension plans, such as Social Security Act;

**(d)** Payment to "employees" on any basis other than time worked, such as piece work, profit sharing or incentive plans;

**(e)** Payment or allowance for hand tools or power tools used by hand, provided by "employees" and used in their work or operations for the Insured;

**(f)** The rental value of any apartment or a house provided for an "employee" based on comparable accommodations;

**(g)** Value of meals and lodging other than an apartment or a house provided for an "employees" as part of their pay;

**(h)** The value of store certificates, merchandise, credits or any other substitute for money received by "employees" as part of their pay;

**(i)** The payroll of all drivers, "mobile equipment" operators and their helpers, whether or not the operators are designated or licenses to operate "autos". If the operators and their helpers are provided to the Insured along with equipment hired under contract and their actual payroll is not known, use 1/3 of the total amount paid out by the Insured for the hire of the equipment;

**(j)** The payroll of "executive officers", individual Insureds and co-partners; and

**(k)** Fees paid to employment agencies for temporary personnel provided to the Insured.

**(3)** Payroll does not include:

**(a)** Tips and other gratuities received by "employees";


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**(b)** Payments by an employer to group insurance or group pension plans for "employees" in accordance with the manuals in use by us;

**(c)** The value of special rewards for individual invention or discovery; or

**(d)** Dismissal or severance payments except for time worked or accrued vacation.

**(4)** The rates apply per $1,000 of payroll.

**4.** Unit(s)

**a.** Definition

A single room or group of rooms intended for occupancy as separate living quarters by a family, a group of unrelated individuals living together, or by a person living by themselves.

**5.** Total Cost

**a.** Definition

**(1)** The total cost of all work or sublet in connection with each specific project, including:

**(a)** The cost of all labor, materials, and equipment furnished, used, or delivered for use in the execution of the work; and

**(b)** All fees, bonuses, or commissions made, paid, or due.

**(2)** The rates apply per $1,000 of total cost.

**6.** Admissions

**a.** Definition

**(1)** The total number of persons, other than "employees", of the Named Insured, admitted to the event Insured or to events conducted on the premises, whether on paid admissions, tickets, complimentary tickets, or passes.

**b.** The rates apply per 1,000 admissions.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

# COMMERCIAL GENERAL LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The words "we", "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such under Section **II** – Who Is An Insured.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section **V** – Definitions.

**SECTION I – COVERAGES**

**COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**

**1. Insuring Agreement**

**a.** We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:

**(1)** The amount we will pay for damages is limited as described in Section **III** – Limits Of Insurance; and

**(2)** Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages **A** or **B** or medical expenses under Coverage **C.**

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages **A** and **B.**

**b.** This insurance applies to "bodily injury" and "property damage" only if:

**(1)** The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";

**(2)** The "bodily injury" or "property damage" occurs during the policy period; and

**(3)** Prior to the policy period, no insured listed under Paragraph **1.** of Section **II** – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

**c.** "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph **1.** of Section **II** – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

**d.** "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph **1.** of Section **II** – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

**(1)** Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;

**(2)** Receives a written or verbal demand or claim for damages because of the "bodily injury" or "property damage"; or

**(3)** Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.

**e.** Damages because of "bodily injury" include damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

 © Insurance Services Office, Inc., 2012 

**2. Exclusions**

This insurance does not apply to:

**a. Expected Or Intended Injury**

"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

**b. Contractual Liability**

"Bodily injury" or "property damage" for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

**(1)** That the insured would have in the absence of the contract or agreement; or

**(2)** Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable attorneys' fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of "bodily injury" or "property damage", provided:

**(a)** Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and

**(b)** Such attorneys' fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

**c. Liquor Liability**

"Bodily injury" or "property damage" for which any insured may be held liable by reason of:

**(1)** Causing or contributing to the intoxication of any person;

**(2)** The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or

**(3)** Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in:

**(a)** The supervision, hiring, employment, training or monitoring of others by that insured; or

**(b)** Providing or failing to provide transportation with respect to any person that may be under the influence of alcohol;

if the "occurrence" which caused the "bodily injury" or "property damage", involved that which is described in Paragraph **(1), (2)** or **(3)** above.

However, this exclusion applies only if you are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages. For the purposes of this exclusion, permitting a person to bring alcoholic beverages on your premises, for consumption on your premises, whether or not a fee is charged or a license is required for such activity, is not by itself considered the business of selling, serving or furnishing alcoholic beverages.

**d. Workers' Compensation And Similar Laws**

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

**e. Employer's Liability**

"Bodily injury" to:

**(1)** An "employee" of the insured arising out of and in the course of:

**(a)** Employment by the insured; or

**(b)** Performing duties related to the conduct of the insured's business; or

**(2)** The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph **(1)** above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

 © Insurance Services Office, Inc., 2012 

**f. Pollution**

**(1)** "Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

**(a)** At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this subparagraph does not apply to:

**(i)** "Bodily injury" if sustained within a building and caused by smoke, fumes, vapor or soot produced by or originating from equipment that is used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;

**(ii)** "Bodily injury" or "property damage" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or

**(iii)** "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire";

**(b)** At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;

**(c)** Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:

**(i)** Any insured; or

**(ii)** Any person or organization for whom you may be legally responsible; or

**(d)** At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:

**(i)** "Bodily injury" or "property damage" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of "mobile equipment" or its parts, if such fuels, lubricants or other operating fluids escape from a vehicle part designed to hold, store or receive them. This exception does not apply if the "bodily injury" or "property damage" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;

**(ii)** "Bodily injury" or "property damage" sustained within a building and caused by the release of gases, fumes or vapors from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or

**(iii)** "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".

**(e)** At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".

**(2)** Any loss, cost or expense arising out of any:

**(a)** Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or

**(b)** Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this paragraph does not apply to liability for damages because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "suit" by or on behalf of a governmental authority.

**g. Aircraft, Auto Or Watercraft**

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading".

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

**(1)** A watercraft while ashore on premises you own or rent;

**(2)** A watercraft you do not own that is:

**(a)** Less than 26 feet long; and

**(b)** Not being used to carry persons or property for a charge;

**(3)** Parking an "auto" on, or on the ways next to, premises you own or rent, provided the "auto" is not owned by or rented or loaned to you or the insured;

**(4)** Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft; or

**(5)** "Bodily injury" or "property damage" arising out of:

**(a)** The operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged; or

**(b)** The operation of any of the machinery or equipment listed in Paragraph **f.(2)** or **f.(3)** of the definition of "mobile equipment".

**h. Mobile Equipment**

"Bodily injury" or "property damage" arising out of:

**(1)** The transportation of "mobile equipment" by an "auto" owned or operated by or rented or loaned to any insured; or

**(2)** The use of "mobile equipment" in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting activity.

**i. War**

"Bodily injury" or "property damage", however caused, arising, directly or indirectly, out of:

**(1)** War, including undeclared or civil war;

**(2)** Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

**(3)** Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

**j. Damage To Property**

"Property damage" to:

**(1)** Property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;

**(2)** Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;

**(3)** Property loaned to you;

 © Insurance Services Office, Inc., 2012 

**(4)** Personal property in the care, custody or control of the insured;

**(5)** That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or

**(6)** That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs **(1), (3)** and **(4)** of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented to you for a period of seven or fewer consecutive days. A separate limit of insurance applies to Damage To Premises Rented To You as described in Section **III** – Limits Of Insurance.

Paragraph **(2)** of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.

Paragraphs **(3), (4), (5)** and **(6)** of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph **(6)** of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

**k. Damage To Your Product**

"Property damage" to "your product" arising out of it or any part of it.

**l. Damage To Your Work**

"Property damage" to "your work" arising out of it or any part of it and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

**m. Damage To Impaired Property Or Property Not Physically Injured**

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

**(1)** A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or

**(2)** A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.

**n. Recall Of Products, Work Or Impaired Property**

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

**(1)** "Your product";

**(2)** "Your work"; or

**(3)** "Impaired property";

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

**o. Personal And Advertising Injury**

"Bodily injury" arising out of "personal and advertising injury".

**p. Electronic Data**

Damages arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

However, this exclusion does not apply to liability for damages because of "bodily injury".

As used in this exclusion, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

**q. Recording And Distribution Of Material Or Information In Violation Of Law**

"Bodily injury" or "property damage" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

**(1)** The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;

**(2)** The CAN-SPAM Act of 2003, including any amendment of or addition to such law;

**(3)** The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA); or

**(4)** Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

Exclusions **c.** through **n.** do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in Section **III** – Limits Of Insurance.

**COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**

**1. Insuring Agreement**

**a.** We will pay those sums that the insured becomes legally obligated to pay as damages because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "suit" that may result. But:

**(1)** The amount we will pay for damages is limited as described in Section **III** – Limits Of Insurance; and

**(2)** Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages **A** or **B** or medical expenses under Coverage **C.**

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages **A** and **B.**

**b.** This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.

**2. Exclusions**

This insurance does not apply to:

**a. Knowing Violation Of Rights Of Another**

"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury".

**b. Material Published With Knowledge Of Falsity**

"Personal and advertising injury" arising out of oral or written publication, in any manner, of material, if done by or at the direction of the insured with knowledge of its falsity.

**c. Material Published Prior To Policy Period**

"Personal and advertising injury" arising out of oral or written publication, in any manner, of material whose first publication took place before the beginning of the policy period.

**d. Criminal Acts**

"Personal and advertising injury" arising out of a criminal act committed by or at the direction of the insured.

**e. Contractual Liability**

"Personal and advertising injury" for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

**f. Breach Of Contract**

"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

**g. Quality Or Performance Of Goods – Failure To Conform To Statements**

"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".

**h. Wrong Description Of Prices**

"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

 © Insurance Services Office, Inc., 2012 

**i. Infringement Of Copyright, Patent, Trademark Or Trade Secret**

"Personal and advertising injury" arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in your "advertisement".

However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

**j. Insureds In Media And Internet Type Businesses**

"Personal and advertising injury" committed by an insured whose business is:

**(1)** Advertising, broadcasting, publishing or telecasting;

**(2)** Designing or determining content of web sites for others; or

**(3)** An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs **14.a., b.** and **c.** of "personal and advertising injury" under the Definitions section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

**k. Electronic Chatrooms Or Bulletin Boards**

"Personal and advertising injury" arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.

**l. Unauthorized Use Of Another's Name Or Product**

"Personal and advertising injury" arising out of the unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

**m. Pollution**

"Personal and advertising injury" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

**n. Pollution-related**

Any loss, cost or expense arising out of any:

**(1)** Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or

**(2)** Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

**o. War**

"Personal and advertising injury", however caused, arising, directly or indirectly, out of:

**(1)** War, including undeclared or civil war;

**(2)** Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

**(3)** Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

**p. Recording And Distribution Of Material Or Information In Violation Of Law**

"Personal and advertising injury" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

**(1)** The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;

**(2)** The CAN-SPAM Act of 2003, including any amendment of or addition to such law;

**(3)** The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA); or

**(4)** Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

**COVERAGE C – MEDICAL PAYMENTS**

**1. Insuring Agreement**

**a.** We will pay medical expenses as described below for "bodily injury" caused by an accident:

**(1)** On premises you own or rent;

**(2)** On ways next to premises you own or rent; or

**(3)** Because of your operations;

provided that:

**(a)** The accident takes place in the "coverage territory" and during the policy period;

**(b)** The expenses are incurred and reported to us within one year of the date of the accident; and

**(c)** The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

**b.** We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance. We will pay reasonable expenses for:

**(1)** First aid administered at the time of an accident;

**(2)** Necessary medical, surgical, X-ray and dental services, including prosthetic devices; and

**(3)** Necessary ambulance, hospital, professional nursing and funeral services.

**2. Exclusions**

We will not pay expenses for "bodily injury":

**a. Any Insured**

To any insured, except "volunteer workers".

**b. Hired Person**

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

**c. Injury On Normally Occupied Premises**

To a person injured on that part of premises you own or rent that the person normally occupies.

**d. Workers' Compensation And Similar Laws**

To a person, whether or not an "employee" of any insured, if benefits for the "bodily injury" are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

**e. Athletics Activities**

To a person injured while practicing, instructing or participating in any physical exercises or games, sports, or athletic contests.

**f. Products-Completed Operations Hazard**

Included within the "products-completed operations hazard".

**g. Coverage A Exclusions**

Excluded under Coverage **A.**

**SUPPLEMENTARY PAYMENTS – COVERAGES A AND B**

**1.** We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:

**a.** All expenses we incur.

**b.** Up to $250 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the Bodily Injury Liability Coverage applies. We do not have to furnish these bonds.

**c.** The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.

**d.** All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to $250 a day because of time off from work.

**e.** All court costs taxed against the insured in the "suit". However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.

**f.** Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

 © Insurance Services Office, Inc., 2012 

**g.** All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

**2.** If we defend an insured against a "suit" and an indemnitee of the insured is also named as a party to the "suit", we will defend that indemnitee if all of the following conditions are met:

**a.** The "suit" against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";

**b.** This insurance applies to such liability assumed by the insured;

**c.** The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";

**d.** The allegations in the "suit" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;

**e.** The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the insured and the indemnitee; and

**f.** The indemnitee:

**(1)** Agrees in writing to:

**(a)** Cooperate with us in the investigation, settlement or defense of the "suit";

**(b)** Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "suit";

**(c)** Notify any other insurer whose coverage is available to the indemnitee; and

**(d)** Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and

**(2)** Provides us with written authorization to:

**(a)** Obtain records and other information related to the "suit"; and

**(b)** Conduct and control the defense of the indemnitee in such "suit".

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph **2.b.(2)** of Section **I** – Coverage **A** – Bodily Injury And Property Damage Liability, such payments will not be deemed to be damages for "bodily injury" and "property damage" and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in Paragraph **f.** above, are no longer met.

**SECTION II – WHO IS AN INSURED**

**1.** If you are designated in the Declarations as:

**a.** An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.

**b.** A partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.

**c.** A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.

**d.** An organization other than a partnership, joint venture or limited liability company, you are an insured. Your "executive officers" and directors are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.

**e.** A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

**2.** Each of the following is also an insured:

**a.** Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:

**(1)** "Bodily injury" or "personal and advertising injury":

**(a)** To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer workers" while performing duties related to the conduct of your business;

**(b)** To the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph **(1)(a)** above;

**(c)** For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraph **(1)(a)** or **(b)** above; or

**(d)** Arising out of his or her providing or failing to provide professional health care services.

**(2)** "Property damage" to property:

**(a)** Owned, occupied or used by;

**(b)** Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by;

you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).

**b.** Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager.

**c.** Any person or organization having proper temporary custody of your property if you die, but only:

**(1)** With respect to liability arising out of the maintenance or use of that property; and

**(2)** Until your legal representative has been appointed.

**d.** Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Coverage Part.

**3.** Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:

**a.** Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;

**b.** Coverage **A** does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and

**c.** Coverage **B** does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

**SECTION III – LIMITS OF INSURANCE**

**1.** The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:

**a.** Insureds;

**b.** Claims made or "suits" brought; or

**c.** Persons or organizations making claims or bringing "suits".

**2.** The General Aggregate Limit is the most we will pay for the sum of:

**a.** Medical expenses under Coverage **C;**

**b.** Damages under Coverage **A,** except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard"; and

**c.** Damages under Coverage **B.**

 © Insurance Services Office, Inc., 2012 

**3.** The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage **A** for damages because of "bodily injury" and "property damage" included in the "products-completed operations hazard".

**4.** Subject to Paragraph **2.** above, the Personal And Advertising Injury Limit is the most we will pay under Coverage **B** for the sum of all damages because of all "personal and advertising injury" sustained by any one person or organization.

**5.** Subject to Paragraph **2.** or **3.** above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of:

**a.** Damages under Coverage **A;** and

**b.** Medical expenses under Coverage **C**

because of all "bodily injury" and "property damage" arising out of any one "occurrence".

**6.** Subject to Paragraph **5.** above, the Damage To Premises Rented To You Limit is the most we will pay under Coverage **A** for damages because of "property damage" to any one premises, while rented to you, or in the case of damage by fire, while rented to you or temporarily occupied by you with permission of the owner.

**7.** Subject to Paragraph **5.** above, the Medical Expense Limit is the most we will pay under Coverage **C** for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

**SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS**

**1. Bankruptcy**

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this Coverage Part.

**2. Duties In The Event Of Occurrence, Offense, Claim Or Suit**

**a.** You must see to it that we are notified as soon as practicable of an "occurrence" or an offense which may result in a claim. To the extent possible, notice should include:

**(1)** How, when and where the "occurrence" or offense took place;

**(2)** The names and addresses of any injured persons and witnesses; and

**(3)** The nature and location of any injury or damage arising out of the "occurrence" or offense.

**b.** If a claim is made or "suit" is brought against any insured, you must:

**(1)** Immediately record the specifics of the claim or "suit" and the date received; and

**(2)** Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "suit" as soon as practicable.

**c.** You and any other involved insured must:

**(1)** Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";

**(2)** Authorize us to obtain records and other information;

**(3)** Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and

**(4)** Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

**d.** No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

**3. Legal Action Against Us**

No person or organization has a right under this Coverage Part:

**a.** To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or

**b.** To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

**4. Other Insurance**

If other valid and collectible insurance is available to the insured for a loss we cover under Coverages **A** or **B** of this Coverage Part, our obligations are limited as follows:

**a. Primary Insurance**

This insurance is primary except when Paragraph **b.** below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in Paragraph **c.** below.

**b. Excess Insurance**

**(1)** This insurance is excess over:

**(a)** Any of the other insurance, whether primary, excess, contingent or on any other basis:

**(i)** That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work";

**(ii)** That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;

**(iii)** That is insurance purchased by you to cover your liability as a tenant for "property damage" to premises rented to you or temporarily occupied by you with permission of the owner; or

**(iv)** If the loss arises out of the maintenance or use of aircraft, "autos" or watercraft to the extent not subject to Exclusion **g.** of Section **I** – Coverage **A** – Bodily Injury And Property Damage Liability.

**(b)** Any other primary insurance available to you covering liability for damages arising out of the premises or operations, or the products and completed operations, for which you have been added as an additional insured.

**(2)** When this insurance is excess, we will have no duty under Coverages **A** or **B** to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

**(3)** When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

**(a)** The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

**(b)** The total of all deductible and self-insured amounts under all that other insurance.

**(4)** We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

**c. Method Of Sharing**

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

**5. Premium Audit**

**a.** We will compute all premiums for this Coverage Part in accordance with our rules and rates.

**b.** Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.

**c.** The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

**6. Representations**

By accepting this policy, you agree:

**a.** The statements in the Declarations are accurate and complete;

 © Insurance Services Office, Inc., 2012 

**b.** Those statements are based upon representations you made to us; and

**c.** We have issued this policy in reliance upon your representations.

**7. Separation Of Insureds**

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

**a.** As if each Named Insured were the only Named Insured; and

**b.** Separately to each insured against whom claim is made or "suit" is brought.

**8. Transfer Of Rights Of Recovery Against Others To Us**

If the insured has rights to recover all or part of any payment we have made under this Coverage Part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

**9. When We Do Not Renew**

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

**SECTION V – DEFINITIONS**

**1.** "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:

**a.** Notices that are published include material placed on the Internet or on similar electronic means of communication; and

**b.** Regarding web sites, only that part of a web site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.

**2.** "Auto" means:

**a.** A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or

**b.** Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

**3.** "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.

**4.** "Coverage territory" means:

**a.** The United States of America (including its territories and possessions), Puerto Rico and Canada;

**b.** International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in Paragraph **a.** above; or

**c.** All other parts of the world if the injury or damage arises out of:

**(1)** Goods or products made or sold by you in the territory described in Paragraph **a.** above;

**(2)** The activities of a person whose home is in the territory described in Paragraph **a.** above, but is away for a short time on your business; or

**(3)** "Personal and advertising injury" offenses that take place through the Internet or similar electronic means of communication;

provided the insured's responsibility to pay damages is determined in a "suit" on the merits, in the territory described in Paragraph **a.** above or in a settlement we agree to.

**5.** "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".

**6.** "Executive officer" means a person holding any of the officer positions created by your charter, constitution, bylaws or any other similar governing document.

**7.** "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.

**8.** "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:

**a.** It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or

**b.** You have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of "your product" or "your work" or your fulfilling the terms of the contract or agreement.

**9.** "Insured contract" means:

**a.** A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";

**b.** A sidetrack agreement;

**c.** Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;

**d.** An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;

**e.** An elevator maintenance agreement;

**f.** That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph **f.** does not include that part of any contract or agreement:

**(1)** That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;

**(2)** That indemnifies an architect, engineer or surveyor for injury or damage arising out of:

**(a)** Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or

**(b)** Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or

**(3)** Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in **(2)** above and supervisory, inspection, architectural or engineering activities.

**10.** "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".

**11.** "Loading or unloading" means the handling of property:

**a.** After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "auto";

**b.** While it is in or on an aircraft, watercraft or "auto"; or

**c.** While it is being moved from an aircraft, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "auto".

**12.** "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

**a.** Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;

**b.** Vehicles maintained for use solely on or next to premises you own or rent;

**c.** Vehicles that travel on crawler treads;

**d.** Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:

**(1)** Power cranes, shovels, loaders, diggers or drills; or

**(2)** Road construction or resurfacing equipment such as graders, scrapers or rollers;

**e.** Vehicles not described in Paragraph **a., b., c.** or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

**(1)** Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or

**(2)** Cherry pickers and similar devices used to raise or lower workers;

**f.** Vehicles not described in Paragraph **a., b., c.** or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.

 © Insurance Services Office, Inc., 2012 

However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

**(1)** Equipment designed primarily for:

**(a)** Snow removal;

**(b)** Road maintenance, but not construction or resurfacing; or

**(c)** Street cleaning;

**(2)** Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

**(3)** Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, "mobile equipment" does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

**13.** "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

**14.** "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:

**a.** False arrest, detention or imprisonment;

**b.** Malicious prosecution;

**c.** The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;

**d.** Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;

**e.** Oral or written publication, in any manner, of material that violates a person's right of privacy;

**f.** The use of another's advertising idea in your "advertisement"; or

**g.** Infringing upon another's copyright, trade dress or slogan in your "advertisement".

**15.** "Pollutants" mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

**16.** "Products-completed operations hazard":

**a.** Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:

**(1)** Products that are still in your physical possession; or

**(2)** Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:

**(a)** When all of the work called for in your contract has been completed.

**(b)** When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.

**(c)** When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

**b.** Does not include "bodily injury" or "property damage" arising out of:

**(1)** The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured;

**(2)** The existence of tools, uninstalled equipment or abandoned or unused materials; or

**(3)** Products or operations for which the classification, listed in the Declarations or in a policy Schedule, states that products-completed operations are subject to the General Aggregate Limit.

**17.** "Property damage" means:

**a.** Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or

**b.** Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

**18.** "Suit" means a civil proceeding in which damages because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Suit" includes:

**a.** An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or

**b.** Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

**19.** "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

**20.** "Volunteer worker" means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

**21.** "Your product":

**a.** Means:

**(1)** Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:

**(a)** You;

**(b)** Others trading under your name; or

**(c)** A person or organization whose business or assets you have acquired; and

**(2)** Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

**b.** Includes:

**(1)** Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and

**(2)** The providing of or failure to provide warnings or instructions.

**c.** Does not include vending machines or other property rented to or located for the use of others but not sold.

**22.** "Your work":

**a.** Means:

**(1)** Work or operations performed by you or on your behalf; and

**(2)** Materials, parts or equipment furnished in connection with such work or operations.

**b.** Includes:

**(1)** Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work"; and

**(2)** The providing of or failure to provide warnings or instructions.

 © Insurance Services Office, Inc., 2012 

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# PRIMARY AND NONCONTRIBUTORY – OTHER INSURANCE CONDITION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following is added to the **Other Insurance** Condition and supersedes any provision to the contrary:

**Primary And Noncontributory Insurance**

This insurance is primary to and will not seek contribution from any other insurance available to an additional insured under your policy provided that:

**(1)** The additional insured is a Named Insured under such other insurance; and

**(2)** You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to the additional insured.

 © Insurance Services Office, Inc., 2012 

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – SCHEDULED PERSON OR ORGANIZATION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

**SCHEDULE**

| Name Of Additional Insured Person(s) Or Organization(s) | Location(s) Of Covered Operations |
|---|---|
| When required under written contract and fully executed prior to an "occurrence" | All |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations. | |

**A.** **Section II – Who Is An Insured** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:

**1.** Your acts or omissions; or

**2.** The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for the additional insured(s) at the location(s) designated above.

However:

**1.** The insurance afforded to such additional insured only applies to the extent permitted by law; and

**2.** If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

**B.** With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:

This insurance does not apply to "bodily injury" or "property damage" occurring after:

**1.** All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or

**2.** That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

 © Insurance Services Office, Inc., 2018 

**C.** With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

**1.** Required by the contract or agreement; or

**2.** Available under the applicable limits of insurance;

whichever is less.

This endorsement shall not increase the applicable limits of insurance.


© Insurance Services Office, Inc., 2018

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

**SCHEDULE**

| Name Of Additional Insured Person(s) Or Organization(s) | Location And Description Of Completed Operations |
|---|---|
| When required under written contract and fully executed prior to an "occurrence" | All |
| | |
| | |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations. | |

**A.** **Section II – Who Is An Insured** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury" or "property damage" caused, in whole or in part, by "your work" at the location designated and described in the Schedule of this endorsement performed for that additional insured and included in the "products-completed operations hazard".

However:

**1.** The insurance afforded to such additional insured only applies to the extent permitted by law; and

**2.** If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

**B.** With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

**1.** Required by the contract or agreement; or

**2.** Available under the applicable limits of insurance;

whichever is less.

This endorsement shall not increase the applicable limits of insurance.

 © Insurance Services Office, Inc., 2018 

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EMPLOYMENT-RELATED PRACTICES EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

**A.** The following exclusion is added to Paragraph **2., Exclusions** of Section **I – Coverage A – Bodily Injury And Property Damage Liability:**

This insurance does not apply to:

"Bodily injury" to:

**(1)** A person arising out of any:

**(a)** Refusal to employ that person;

**(b)** Termination of that person's employment; or

**(c)** Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person; or

**(2)** The spouse, child, parent, brother or sister of that person as a consequence of "bodily injury" to that person at whom any of the employment-related practices described in Paragraphs **(a), (b),** or **(c)** above is directed.

This exclusion applies:

**(1)** Whether the injury-causing event described in Paragraphs **(a), (b)** or **(c)** above occurs before employment, during employment or after employment of that person;

**(2)** Whether the insured may be liable as an employer or in any other capacity; and

**(3)** To any obligation to share damages with or repay someone else who must pay damages because of the injury.

**B.** The following exclusion is added to Paragraph **2., Exclusions** of Section **I – Coverage B – Personal And Advertising Injury Liability:**

This insurance does not apply to:

"Personal and advertising injury" to:

**(1)** A person arising out of any:

**(a)** Refusal to employ that person;

**(b)** Termination of that person's employment; or

**(c)** Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person; or

**(2)** The spouse, child, parent, brother or sister of that person as a consequence of "personal and advertising injury" to that person at whom any of the employment-related practices described in Paragraphs **(a), (b),** or **(c)** above is directed.

This exclusion applies:

**(1)** Whether the injury-causing event described in Paragraphs **(a), (b)** or **(c)** above occurs before employment, during employment or after employment of that person;

**(2)** Whether the insured may be liable as an employer or in any other capacity; and

**(3)** To any obligation to share damages with or repay someone else who must pay damages because of the injury.


© ISO Properties, Inc., 2006

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# TOTAL POLLUTION EXCLUSION WITH A HOSTILE FIRE EXCEPTION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

Exclusion **f.** under Paragraph **2., Exclusions** of **Section I – Coverage A – Bodily Injury And Property Damage Liability** is replaced by the following:

This insurance does not apply to:

**f. Pollution**

**(1)** "Bodily injury" or "property damage" which would not have occurred in whole or part but for the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

This exclusion does not apply to "bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire" unless that "hostile fire" occurred or originated:

**(a)** At any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste; or

**(b)** At any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations to test for, monitor, clean up, remove, contain, treat, detoxify, neutralize or in any way respond to, or assess the effects of, "pollutants".

**(2)** Any loss, cost or expense arising out of any:

**(a)** Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of "pollutants"; or

**(b)** Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

 Copyright, Insurance Services Office, Inc., 1998  ☐

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION – EXTERIOR INSULATION AND FINISH SYSTEMS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

**A.** This insurance does not apply to "bodily injury", "property damage" or "personal and advertising injury" arising out of, caused by, or attributable to, whether in whole or in part, the following:

**1.** The design, manufacture, construction, fabrication, preparation, distribution and sale, installation, application, maintenance or repair, including remodeling, service, correction or replacement, of any "exterior insulation and finish system" or any part thereof, or any substantially similar system or any part thereof, including the application or use of conditioners, primers, accessories, flashings, coatings, caulking or sealants in connection with such a system; or

**2.** "Your product" or "your work" with respect to any exterior component, fixture or feature of any structure if an "exterior insulation and finish system", or any substantially similar system, is used on the part of that structure containing that component, fixture or feature.

**B.** The following definition is added to the **Definitions** Section:

"Exterior insulation and finish system" means a non-load bearing exterior cladding or finish system, and all component parts therein, used on any part of any structure, and consisting of:

**1.** A rigid or semi-rigid insulation board made of expanded polystyrene and other materials;

**2.** The adhesive and/or mechanical fasteners used to attach the insulation board to the substrate;

**3.** A reinforced or unreinforced base coat;

**4.** A finish coat providing surface texture to which color may be added; and

**5.** Any flashing, caulking or sealant used with the system for any purpose.

 © ISO Properties, Inc., 2003 

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# SILICA OR SILICA-RELATED DUST EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

**A.** The following exclusion is added to Paragraph **2., Exclusions** of **Section I – Coverage A – Bodily Injury And Property Damage Liability:**

**2. Exclusions**

This insurance does not apply to:

**Silica Or Silica-Related Dust**

**a.** "Bodily injury" arising, in whole or in part, out of the actual, alleged, threatened or suspected inhalation of, or ingestion of, "silica" or "silica-related dust".

**b.** "Property damage" arising, in whole or in part, out of the actual, alleged, threatened or suspected contact with, exposure to, existence of, or presence of, "silica" or "silica-related dust".

**c.** Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "silica" or "silica-related dust", by any insured or by any other person or entity.

**B.** The following exclusion is added to Paragraph **2., Exclusions** of **Section I – Coverage B – Personal And Advertising Injury Liability:**

**2. Exclusions**

This insurance does not apply to:

**Silica Or Silica-Related Dust**

**a.** "Personal and advertising injury" arising, in whole or in part, out of the actual, alleged, threatened or suspected inhalation of, ingestion of, contact with, exposure to, existence of, or presence of, "silica" or "silica-related dust".

**b.** Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "silica" or "silica-related dust", by any insured or by any other person or entity.

**C.** The following definitions are added to the **Definitions** Section:

**1.** "Silica" means silicon dioxide (occurring in crystalline, amorphous and impure forms), silica particles, silica dust or silica compounds.

**2.** "Silica-related dust" means a mixture or combination of silica and other dust or particles.

 © ISO Properties, Inc., 2004 

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# ADDITIONAL EXCLUSIONS AND LIMITATIONS - CONSTRUCTION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusions are added to this Policy:

**Continuous or Progressive Injury or Damage**

This insurance does not apply to:

“Bodily injury”, “property damage”, or, if provided, “personal and advertising injury” that:

1. First occurred, first began to occur, or is alleged to have first occurred;
2. Is alleged to be in the process of occurring to any degree; or
3. Is caused by or alleged to have been caused by incremental, continuous, or progressive injury or damage arising from an “occurrence” or offense which first occurred, began to occur, or is alleged to have first occurred,

prior to the effective date of this policy.

However, this exclusion does not apply to the “bodily injury”, “property damage”, or, if provided, “personal and advertising injury” that actually or allegedly occurred in Colorado and was unknown by you prior to the policy period.

**Discrimination**

This insurance does not apply to any “bodily injury”, “property damage”, or if provided, “personal and advertising injury” arising, directly or indirectly, out of, related to, or in any way involving discrimination of any kind, whether actual or alleged, nor to any expenses or obligation to share damages with or repay another who must pay damages from discrimination.

**Dishonest, Fraudulent or Malicious Acts**

This insurance does not apply to “bodily injury”, “property damage”, or, if provided, “personal and advertising injury” arising out of any dishonest, fraudulent, or malicious act, including reckless violation of any statute, or any act deemed uninsurable by law, committed by, or at the direction of any insured.

**Electromagnetic Radiation**

This insurance does not apply to any “bodily injury”, “property damage”, or, if provided, “personal and advertising injury” arising out of, related to, caused by, contributed to, or in any way connected with the actual or alleged exposure to or the presence of “electromagnetic radiation”.



**LSIC-CON-1000 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

For the purposes of this exclusion, “electromagnetic radiation” means any form of electrical and magnetic energy, or electric and magnetic field(s) within the electromagnetic spectrum, whether naturally occurring or artificially created, regardless of source, and includes, but is not limited to, radio frequency radiation.

**Employment Practices**

This insurance does not apply to any liability for employment-related practices, regardless of allegations, nor to any expenses, nor to any obligation to share damages with, or repay anyone else who must pay damages from same including but not limited to:

**1.** Refusal to employ or termination of employment;

**2.** Discrimination, coercion, demotion, evaluation, reassignment, discipline, defamation, harassment in any form, humiliation or other employment-related practices, policies, acts or omissions; or

**3.** Consequential “bodily injury”, “property damage”, or, if provided, “personal and advertising injury” as a result of **1.** or **2.** above.

**ERISA**

This insurance does not apply to:

Damages for which any insured is liable because of liability imposed on a fiduciary by the Employee Retirement Income Security Act of 1974, as now or hereafter amended, or by any similar federal, state, or local laws.

**Fiduciary**

This insurance does not apply to claims arising out of, related to, or in any way involving:

**1.** Coercion, conversion, or misappropriation of others’ funds or property;

**2.** Any dishonest, fraudulent, criminal, malicious act, or omission of the Insured, partner, “employee”, or any person for whom you are legally responsible; or

**3.** Any activities or operations performed in the capacity of a fiduciary.

**Lead and Asbestos**

This insurance does not apply to “bodily injury”**, “**property damage”**,** or, if provided, “personal and advertising injury” arising directly or indirectly out of, related to, or in any way involving asbestos or lead, including any claim or “suit” for expenses or any obligations to share damages with or repay anyone else who must pay damages from asbestos or lead.

This exclusion applies to:

**1.** Any “bodily injury”**, “**property damage”**,** or, if provided, “personal and advertising injury” of any type arising out of the inhalation, ingestion, exposure to, degradation of, absorption of, or toxic substance from asbestos or lead in any form or from any goods, products or structures containing asbestos or lead in any form; or

**2.** The existence of or degradation of asbestos or lead in any form in occupancy or construction or the manufacture, sale, transportation, handling, storage, disposal, or removal of the same or goods or products containing asbestos or lead.

**Longshore and Other Maritime Laws**

 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

This insurance does not apply to “bodily injury,” “property damage”, or, if provided “personal and advertising injury” arising out of, directly or indirectly, contributed to by, related in any way, or resulting from:

1. Operations over navigable waters or offshore waters including but not limited to drilling and production platforms, pipelines, and vessels; or

2. Direct or indirect actions including but not limited to those related to subrogation involving the U.S. Longshore & Harbor Workers Compensation Act (USL&H), Merchant Marine Act (Jones Act) or other maritime laws or regulations and any amendments to those laws or regulations.

**Named Insured vs. Named Insured**

This insurance does not apply to any claim made or “suit” brought by any Named Insured covered by this policy against any other Named Insured covered by this Policy.

**Newly Acquired Entities**

Section **II** - Who Is An Insured, Paragraph **3.** is deleted in its entirety and not replaced.

**Nuclear, Biological, or Chemical Materials**

This insurance does not apply to any claim or “suit” for “bodily injury”, “property damage”, or, if provided, “personal and advertising injury” arising directly or indirectly out of or relating to any activity by an individual acting alone, or individuals acting as part of a group, that involves any violent act, including the threat of any activity or preparation for an activity that involves the use, release, dispersal, discharge, escape, or application of:

1. Nuclear materials, or directly results in nuclear reaction or radiation or radioactive contamination; or

2. Pathogenic or poisonous biological or chemical materials.

**Occupational Disease**

This insurance does not apply to any claim or “suit” for “bodily Injury”, “property damage”, or, if provided, “personal and advertising injury” arising directly or indirectly out of, or relating to, in any way whatsoever, any “occupational disease”.

For the purposes of this exclusion, “occupational disease” means any physical or mental disease, condition or disability of any “employee(s)” of any insured arising out of the insured’s operations or conditions of employment, including any disease, condition, or disability from a repetitive operation or any contact with, handling of, inhalation, absorption, or exposure to any environmental, chemical or toxic agent or substance, including any dust or fumes or smoke therefrom arising out of the insured’s operation.

**Pathogen and Related Hazards**

This insurance does not apply to any claim or “suit” for “bodily Injury”, “property damage”, or, if provided, “personal and advertising injury” arising directly or indirectly out of, or relating to, in any way whatsoever, “pathogen and related hazards”. This exclusion applies to any claim or “suit” regardless of whether the “pathogen and related hazards” is the initial or precipitating cause or in any way a cause of the injury or damages, whether factual, implied, or alleged.

As used in this exclusion, “pathogen and related hazards” means:

1. Fungus, including but not limited to mildew and mold; or

2. Any protist; or



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

3. Any chemical matter or compound produced or released by a fungus or protist; or

4. Any pathogen, including but not limited to virus or bacterium; or

5. Any sexually transmitted diseases or any other communicable disease; or

6. Any other disease transmissible by direct or indirect contact with an affected individual.

**Professional Liability**

This insurance does not apply to professional liability, malpractice, errors, negligence, and/or omissions or acts of any kind involving any type of professional service in any way.

This exclusion applies but is not limited to rendering or failure to provide any type professional service and to expenses or any obligation to share damages with or repay any other person or organization who must pay damages resulting from the same, unless such professional liability coverage is included by endorsement in this Policy.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage", or the offense which caused the "personal and advertising injury", involved the rendering of or failure to render any professional services by you or on your behalf.

**Unmanned Aircraft**

This insurance does not apply to any “bodily injury”, “property damage”, or, if provided, “personal and advertising injury” arising out of or related in any way to the operation, existence, malfunction, piloting, control, or presence of any “unmanned aircraft”.

“Unmanned aircraft” means an aircraft that is not designed, manufactured, or modified after manufacture, to be controlled directly by a person from within or on the aircraft.

All other terms and conditions of the Policy remain unchanged.



**LSIC-CON-1000 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# COMPOSITE RATE ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

## SCHEDULE

| **Composite Rate:** | **Premium Basis:** |
|---|---|
| 8.2400 | Gross Sales |

This Policy is rated on a composite rate basis. The composite rate shown in the Schedule above is a composite of the rates shown on the Declarations of this Policy.

The premium stated in the Declarations of this Policy is a deposit premium only. Upon expiration or cancellation of this Policy, the final earned premium will be computed by applying the composite rate shown in the Schedule above as it applies to the premium basis shown in the Schedule above. It is understood that a complete re-survey of the exposures and rate may be made at any time at our request to reflect a exposure changes which would not otherwise be fully reflected by the rating bases in effect. You agree to notify us if at any time your operations or exposures change.

To the extent the provisions of this endorsement conflict with any other provisions of the Policy, the provisions of this endorsement shall apply and supersede any conflict.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - OPERATIONS COVERED BY A DEDICATED INSURANCE (WRAP-UP) PROGRAM

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to:

"Bodily injury" or "property damage" arising out of your ongoing operations or your operations included within the "products-completed operations hazard" at any location where a consolidated (wrap-up) insurance program has been provided by the prime contractor, project manager, or owner of the construction project and you are enrolled in such consolidated (wrap-up) insurance program.

This exclusion applies whether or not the consolidated (wrap-up) insurance program:

**1.** Provides coverage to one or more contractors;

**2.** Provides multiple lines of coverage;

**3.** Provides coverage identical to that provided by this Policy;

**4.** Has limits adequate to cover all claims or "suits", or

**5.** Remains in effect.

For the purposes of this endorsement, consolidated (wrap-up) insurance program includes an owner-controlled insurance program, contractor-controlled insurance program, rolling wrap-up, and any other job or project specific insurance program.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT (BROAD FORM)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

**1.** This insurance does not apply:

**a.** Under any Liability Coverage to "bodily injury" or "property damage":

**(1)** With respect to which an Insured under the Policy is also an Insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or

**(2)** Resulting from the "hazardous properties" of "nuclear material" and with respect to which:

**(a)** any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof; or

**(b)** the Insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

**b.** Under any Medical Payments coverage, to expenses incurred with respect to "bodily injury" resulting from the "hazardous properties" of "nuclear material" and arising out of the operation of a "nuclear facility" by any person or organization.

**c.** Under any Liability Coverage, to "bodily injury" or "property damage" resulting from "hazardous properties" of "nuclear material", if:

**(1)** The "nuclear material":

**(a)** is at any "nuclear facility" owned by, or operated by or on behalf of, an Insured; or

**(b)** has been discharged or dispersed therefrom;

**(2)** The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported, or disposed of, by or on behalf of an Insured; or

**(3)** The "bodily injury" or "property damage" arises out of the furnishing by an Insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion **(3)** applies only to "property damage" to such "nuclear facility" and any property thereat.



**LSIC-IL-1016 01 26** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**2.** As used in this endorsement:

"Hazardous properties" includes radioactive, toxic, or explosive properties.

"Nuclear material" means "source material", "special nuclear material" or "by-product material".

"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material:

**a.** containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content; and

**b.** resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

"Nuclear facility" means:

**a.** Any "nuclear reactor";

**b.** Any equipment or device designed or used for:

**(1)** separating the isotopes of uranium or plutonium;

**(2)** processing or utilizing "spent fuel"; or

**(3)** handling, processing or packaging "waste";

**c.** Any equipment or device used for the processing, fabricating or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the **Insured** at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;

**d.** Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of "waste";

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

"Nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

"Property damage" includes all forms of radioactive contamination of property.

All other terms and conditions of the Policy remain unchanged.



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# NOTICE OF CANCELLATION TO THIRD PARTY AS REQUIRED BY WRITTEN CONTRACT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

## SCHEDULE

| | |
|---|---|
| **Number of Days:** | 30 |
| **Person(s) or Organization(s) that Notice of Policy Termination will be Provided to:** | |

The following condition is added to this Policy:

We will provide written Notice of Cancellation to an additional insured stating when, not less than the Number of Days shown in the Schedule above, cancellation will become effective. This notice will be provided to the Person(s) or Organization(s) listed in the Schedule above.

This condition only applies if:

1. The Policy is cancelled by us;
2. Cancellation is for the reasons other than:
    a. Non-payment of premium; or
    b. Non-payment of any deductible reimbursement;
3. You are required by written contract to provide the additional insured with such notice; and
4. You agree to provide us with a list of the applicable additional insureds, including their complete mailing addresses, within 7 days of our notice.

If notice is mailed, proof of such mailing is sufficient proof of such notice.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - PUNITIVE OR EXEMPLARY DAMAGES

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to any punitive or exemplary damages, in whatever form assessed, awarded against any insured.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY**

# EXCLUSION - PRIOR WORK

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

## SCHEDULE

| | |
|---|---|
| **PRIOR WORK DATE:** | 09/28/2026 |

The following exclusion is added to this Policy:

This insurance does not apply to any “bodily injury”, “property damage”, “personal and advertising injury”, or any injury, loss, or damage included in the “products-completed operations hazard” arising directly or indirectly out of, related to, or in any way involving “your work” that was done or completed by you or any others contracted or working on your behalf prior to the date shown in the Schedule above.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1035 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - INTELLECTUAL PROPERTY

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to any “bodily injury,” “property damage”, or “personal and advertising injury” arising directly or indirectly out of, related to, or in any way involving:

1. Actual or alleged infringement of copyright, patent, trademark, service mark, right of publicity, slogan, trade dress, trade secret, any other proprietary property rights, intellectual property recognized, or other intellectual property rights;

2. Actual or alleged false advertising, false designation of origin, product disparagement, trade libel, or other causes of action arising out of unfair competition; or

3. Products or goods manufactured, sold, handled, distributed, or work completed by the Insured or others operating under the direction or control of the Insured in violation of any law, statute, or ordinance of any federal, state, or municipal, or any agencies thereof, including violations of the Lanham Act or other unfair competition statutes.

All other terms and conditions of this Policy remain unchanged.



**LSIC-IL-1044 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# ABSOLUTE EXCLUSION - PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to any “bodily injury”, “property damage”, or “personal and advertising injury” arising directly or indirectly out of, related to, or in any way involving “perfluoroalkyl and polyfluoroalkyl substances (PFAS)”.

This exclusion applies to any “bodily injury”, “property damage”, or “personal and advertising injury” regardless of whether the “perfluoroalkyl and polyfluoroalkyl substances (PFAS)” is the initial precipitating cause or is in any way a cause of the “bodily injury”, “property damage”, or “personal and advertising injury” and regardless of whether any other actual or alleged cause contributed concurrently, proximately, or in any sequence, including whether any actual or alleged “bodily injury”, “property damage”, or “personal and advertising injury” arises out of a chain of events that includes or includes any “perfluoroalkyl and polyfluoroalkyl substances (PFAS)”.

The following is added to the **Definitions** Section of this policy:

“Perfluoroalkyl and polyfluoroalkyl substances (PFAS)” means:

**1.** A perfluoroalkyl or polyfluoroalkyl substance, or any manmade chemical that has multiple fluorine atoms attached to an alkyl chain including, but not limited to, perfluorooctanesulfonic acid (PFOS), perfluorooctanoic acid (PFOA), perfluorinated chemicals or perfluorochemicals (PFCs), C8, Teflon,GenX, fluorotelomers, perfluorooctanoate, perfluorocaprylic acid, pentadecafluorooctanoic acid, fluorosurfactants, perfluorooctanesulfonamide (PFOSA), perfluorononanoic acid (PFNA), perfluorohexanoic acid (PFHxA), perfluorobutanesulfonic acid, perfluorobutane sulfonate (PFBS), and any precursor to or derivative of these chemicals; or

**2.** Any daughter compound or degradation by-product of any substance or chemical listed or described in **1**. above.

All other terms and conditions of this Policy remain unchanged.



**LSIC-IL-1045 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# DEDUCTIBLE ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

## SCHEDULE

| **Coverage** | **Amount And Basis Of Deductible** | |
|---|---|---|
| **Bodily Injury Liability:** | **Each Claim or** | **Each Occurrence** |
| **Property Damage Liability:** | **Each Claim or** | **Each Occurrence** |
| **Personal and Advertising Injury Liability:** | **Each Claim or** | **Each Offense** |
| **Bodily Injury Liability And/or Property Damage Liability and/or Personal And Advertising Injury Liability, combined:** | **Each Claim or** | **Each Occurrence**<br>$1,000 |
| **Liquor Liability:** | **Each Claim or** | **Each Common Cause** |

If no entry appears in the Schedule above, the information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.

Please refer to the coverage form(s) to determine which terms are defined. Words shown in quotations on this endorsement may or may not be defined in all coverage forms.

**1.** Our obligation to pay damages on your behalf under Bodily Injury Liability, Property Damage Liability, Personal and Advertising Injury Liability, or Liquor Liability under this policy, as referenced above, applies only to the amount of damages in excess of any deductible amounts shown in the Schedule of this endorsement.

**2.** Your deductible applies to the coverage option and to the basis of the deductible indicated by the placement of the deductible amount in the Schedule of this endorsement and will include loss payments, adjustments, investigative and legal fees and costs, whether or not loss payment is involved.

The deductible amount shown in the Schedule of this endorsement applies as follows:

**a. Each Claim**

If the deductible amount indicated in the Schedule of this endorsement is on an Each Claim basis, that deductible amount applies as follows:

**(1)** Under Bodily Injury Liability, to all damages sustained by any one person because of "bodily injury" as the result of any one "occurrence".

**(2)** Under Property Damage Liability, to all damages sustained by any one person because of "property damage" as the result of any one "occurrence".


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**(3)** Under Personal and Advertising Injury Liability, to all damages sustained by any one person because of “personal and advertising injury” as the result of any one offense.

**(4)** Under Bodily Injury Liability and Property Damage Liability and Personal and Advertising Injury Liability, combined, to all damages sustained by any one person because of:

**(a)** "Bodily injury";

**(b)** "Property damage";

**(c)** “Personal and advertising injury”; or

**(d)** "Bodily injury" and "property damage" and “personal and advertising injury”, combined;

as the result of any one "occurrence".

If damages are claimed for care, loss of services, or death resulting at any time from "bodily injury", a separate deductible amount will be applied to each person making a claim for such damages.

With respect to "property damage", person includes an organization.

**b. Each Occurrence, Offense, Act, or Error or Omission**

If the deductible amount indicated in the Schedule of this endorsement is on an Each Occurrence basis, Each Offense basis, Each Act basis, or Each Error Or Omission basis, that deductible amount applies as follows:

**(1)** Under Bodily Injury Liability, to all damages because of "bodily injury" as the result of any one "occurrence".

**(2)** Under Property Damage Liability, to all damages because of "property damage" as the result of any one "occurrence".

**(3)** Under Personal and Advertising Injury Liability, to all damages because of "personal and advertising injury" as the result of any one offense.

**(4)** Under Bodily Injury Liability and Property Damage Liability and Personal and Advertising Injury Liability, combined, to all damages because of:

**(a)** "Bodily injury";

**(b)** "Property damage";

**(c)** “Personal and advertising injury”; or

**(d)** "Bodily injury" and "property damage" and “personal and advertising injury”; combined;

as the result of any one "occurrence".

**c. Each Claim or Common Cause - Liquor Liability**

If the deductible amount indicated in the Schedule of this endorsement is on an Each Common Cause basis, that deductible amount applies to all damages because of "injury" as the result of the selling, serving, or furnishing of alcoholic beverages.

**3.** The terms of this insurance, including those with respect to:

**a.** Our right and duty to defend the Insured against any "suits" seeking those damages; and

**b.** Your duties in the event of an "occurrence", offense, act, error or omission, claim, or "suit";

apply irrespective of the application of the deductible amount.

4. We may pay any part of or the entire deductible amount to effect settlement of any claim or "suit" and, upon notification of the action taken, you must promptly reimburse us for such part of the deductible amount as has been paid by us.

5. In the event that you do not promptly reimburse us for the deductible amount demanded, then any cost we incur in collection of the deductible amount including, but not limited to, collection agency fees, attorneys' fees, and interest will be added and applied in addition to the applicable deductible amount without limitation to such costs.

All other terms and conditions remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

**SCHEDULE**

| | |
|---|---|
| **Name of Additional Insured Person(s) or Organization(s), if applicable:** | |

Section **IV -** Conditions, Paragraph **8.** Transfer of Rights of Recovery Against Others to Us is amended by adding the following:

**1.** We waive any right of recovery we may have against any person(s) or organization(s) because of any payment we make under this Policy for injury or damage arising out of "your product" and/or "your work", to whom the Insured has waived its right of recovery in a written contract or agreement. Such waiver by us applies only to the extent that the Insured has waived its right of recovery by a signed, fully executed contract prior to the "occurrence" against such person(s) or organization(s).

**2.** We waive any right of recovery we may have against any person(s) or organization(s) listed in the Schedule above because of any payment we make under this Policy for injury or damage arising out of "your product" and/or "your work", to whom the Insured has waived its right of recovery in a written contract or agreement. Such waiver by us applies only to the extent that the Insured has waived its right of recovery by a signed, fully executed contract prior to the "occurrence" against such person(s) or organization(s).

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# COMMON CONDITIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

**Anti-Stacking**

If this coverage form and any other coverage form or policy issued to you by us or any other company affiliated with us applies to the same loss, the combined maximum limit of insurance under all of the coverage forms or policies shall not exceed the highest applicable limit of insurance under any one coverage form or policy.

This condition does not apply to any coverage form or policy issued by us or an affiliated company specifically to apply as excess insurance over this coverage form.

**Assignment**

Assignment of interest under this Policy is prohibited and will not bind the Company unless and until its consent is endorsed hereon.

**Binding Arbitration**

If we and the Insured do not agree as to whether coverage is provided under any Coverage Form for a claim or “occurrence”, then either party may make a written demand for arbitration. This demand must be sent via first-class mail to either the Named Insured listed in the Declarations of this Policy or to the Company’s address listed in the Declarations of this Policy, whichever is applicable.

When this demand is made, each party shall select an arbitrator within 14 days. The two arbitrators shall then select a third. If they cannot agree within 30 days of the demand, either arbitrator may request that the selection be made by a judge of a court having jurisdiction. Each party shall:

**1.** Pay the expenses it incurs; and

**2.** Bear the expenses of the third arbitrator equally.

Unless both parties agree in writing otherwise, arbitration will take place in the county or parish in which the Company’s address shown in the Declarations is located. Local rules of law as to procedure and evidence shall apply. A decision agreed to by two of the three arbitrators shall be binding.

**Cancellation**

**1.** This Policy may be canceled by the first **Named Insured** by surrender thereof to the Company or by mailing to the Company written notice stating when thereafter the cancellation will be effective.

**2.** This Policy may be canceled by the Company by mailing to the first **Named Insured** at the last mailing address known to the Company written notice of cancellation pursuant to applicable state law.



**LSIC-IL-1057 10 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

3. The notice of cancellation will state the effective date of cancellation. The **Policy Period** will end on that date.

4. The mailing of such notice will be sufficient proof of notice.

5. Electronic delivery of such written notice either by the first **Named Insured** or by the Company will be equivalent to mailing.

6. If the Company cancels this Policy, a refund due will be computed on a pro-rata basis and will be returned to the first **Named Insured**. If the first **Named Insured** cancels this Policy, the refund due will be 90% of the pro-rata unearned paid premium, or the Minimum Earned Premium as specified in the Minimum and Deposit Premium endorsement of this Policy, whichever is less. The first **Named Insured** may elect in writing to the Company to have any return premium due to the **Named Insured** applied to the additional premium charged for the Extended Reporting Period endorsement if available.

7. Premium adjustment may be made either at the time cancellation is effective or as soon as practicable after cancellation becomes effective, but payment or tender of unearned premium is not a condition of cancellation.

8. If the Policy is canceled subject to audit, any change in premium will be calculated upon completion of the final audit.

**Changes**

Notice to or knowledge possessed by any person will not effect a waiver or a change in any part of this Policy or stop the Company from asserting any right under the terms of this Policy. This Policy's terms may not be waived or changed except by an endorsement issued by and signed by an authorized representative of the Company.

**Headings**

The descriptions in the headings of this Policy are solely for convenience and form no part of the terms and conditions of coverage.

**Premium**

All premium charges under this Policy will be computed according to the rules, rates, and rating plans that apply at the effective date of the current Policy Period.

The Named Insured will maintain records of such information as is necessary for auditable premium computation and will send verifiable copies of such records on an accrual basis to the Company at the end of the Policy Period and at such times during the Policy Period as the Company may direct. Subsequent to audit by the Company, the Named Insured will forward to the Company any additional premium warranted by such audit.

**Representations**

The **Representations** Condition is deleted in its entirety and replaced by the following:

By acceptance of this Policy, the Named Insured agrees that:

1. All of the information and statements provided to the Company by the Named Insured are true, accurate, and complete and will be deemed to constitute material representations made by all of the Insureds;

2. This Policy is issued in reliance upon the Named Insured's representations; and


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

3. The willful or intentional misrepresentation of any material matter by the Named Insured or its agent will render this Policy null and void and relieve the Company from all liability herein.

**Rules of Construction (Defined Terms Only)**

In this Policy and any endorsement to this Policy, unless the context clearly requires otherwise, all definitions shall apply equally to the singular and plural forms of the term. This provision is for interpretive clarity only; it does not create coverage where none otherwise exists and does not modify any Limits of Insurance or Deductibles.

**Service of Suit**

Pursuant to any statute of any state, territory, or district of the United States or province of Canada, which makes provision therefore, the Company hereby designates the Superintendent, Commissioner, Director of Insurance, or other Officer specified for that purpose in the Statute, or his/her successor or successors in office, as its true and lawful attorney upon whom may be served any lawful process in any action, "suit", or proceeding instituted by or on behalf of you or any beneficiary hereunder arising out of this contract of insurance, and hereby designates the below named as the person to whom the said Officer is authorized to mail such process or a true copy thereof.

It is further agreed that service of process in such "suit" may be made upon:

1. Lio Specialty Insurance Company, c/o CT Corporation System, 3800 N. Central Avenue, Ste 460, Phoenix, AZ 85012.

Nothing herein shall constitute a selection or designation of forum, or a waiver of any of the Company's rights to select a forum or court, including any of the federal courts of the United States. This includes any right to commence an action in or remove or transfer an action to the United States District Court or any other court of competent jurisdiction, as permitted by law.

The right of the Insured to bring "suit**"** as provided by this condition shall be limited to a "suit" brought in its own name and for its own account.

**Sole Agent**

The Named Insured is authorized to act on behalf of all Insureds with respect to giving or receiving notice of cancellation, non-renewal, premium, or changes in this Policy, or request for an Extended Reporting Period endorsement.

**Trade or Economic Sanctions**

This insurance does not provide any coverage, and we (the Company) shall not make payment of any claim or provide any benefit hereunder, to the extent that the provision of such coverage, payment of such claim or provision of such benefit would expose us (the Company) to a violation of any applicable trade or economic sanctions, laws or regulations, including but not limited to, those administered and enforced by the United States Treasury Department's Office of Foreign Assets Control (OFAC).

All other terms and conditions of this Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - CYBER INCIDENT, DATA COMPROMISE, AND VIOLATION OF LAWS RELATED TO PERSONAL OR COMPANY DATA

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to:

**1.** "Bodily injury", "property damage", or, if provided, "personal and advertising injury"; any other type of injury or damage; and

**2.** Notification costs, credit, or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses, or any other loss, cost, or expense incurred by you or others, arising out of, directly or indirectly, or in whole or in part, any:

**a.** Accessing, disclosing, collecting, taking, storing, disseminating, or using "electronic data" or "confidential information"; or

**b.** "Cyber incident", cyberattack, hacking, ransomware, malware, or self-replicating code; or

**c.** Any unauthorized access, disclosure, theft, taking, misappropriation, or malfeasance related to any sort of Crypto or electronic currency.

For the purposes of this endorsement, the following Definitions are added to the **Definitions** section of the Policy:

**1.** "Electronic data" means:

**a.** Any information, facts, code, or programs created, stored, or saved in or on any electronic device, software, system, application, database, cloud, or media used for digital storage, including servers, hard or flash drives, hard or floppy disks, CD-ROMS, tapes, or cells.

**2.** "Confidential information" means:

**a.** Confidential or personal information, including but not limited to patents, trade secrets, processing methods, customer lists, financial information, credit card information, health or medical information, biometric data, or any other type of nonpublic information.

**3.** "Cyber incident" means:

**a.** Unauthorized access to or use of any computer system; and/or

**b.** Malicious code, virus or any other harmful code that is directed at, enacted upon or introduced into any computer system and is designed to access, alter, corrupt, damage, delete, destroy, disrupt, encrypt, exploit, use or prevent, or restrict access to or the use of any part of any computer system or otherwise disrupt its normal functioning or operation; and/or

**c.** Denial of service (DOS) attack which disrupts, prevents, or restricts access to or use of any computer system, or otherwise disrupts its normal functioning or operation; and/or


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**d.** Any type of ransomware attack.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - BREACH OF CONTRACT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

This endorsement modifies the insurance provided under the Policy by the following:

Paragraph **2.** Exclusions under Section **I** - Coverages, Coverage **A** - Bodily Injury and Property Damage Liability and Coverage **B** - Personal and Advertising Injury Liability are amended as follows:

The following exclusion is added to Coverage **A.** and replaces exclusion **f.** Breach of Contract in Coverage **B.**:

This insurance does not apply to:

> "Bodily injury", "property damage", or "personal and advertising injury" arising out of, caused by, contributed to by, or in any way related to any insured's failure to fulfill the terms of a contract or agreement. We have no obligation to:
>
> **a.** Defend any insured against any claim or "suit"; or
>
> **b.** Indemnify any insured for any sum
>
> arising out of any actual or alleged breach of contract, whether such contract is written, oral, or implied in law or in fact.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1067 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - DESIGNATED STATE(S)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY PART

## SCHEDULE

| | |
|---|---|
| **Designated State(s):** | New York |

The following exclusion is added to this Policy:

This insurance does not apply to any “bodily injury”, “property damage”, or “personal and advertising injury” arising directly or indirectly out of, related to, or in any way involving “your work”, whether or not “your work” is or was conducted by you or any others contracted or working on your behalf, in the state(s) listed in the Schedule above.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - OPEN ROOF

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to “bodily injury” or “property damage” arising out of, contributed to, or in any way related to or involving an “open roof” during any wind, hail, snow, rain, or ice, including any combination of the foregoing.

This exclusion applies to the negligent hiring, employment, training, supervision, or retention of any Insured, “employee”, agent or other person with respect to such work and regardless of whether such work is conducted by you, on your behalf, for yourself, or for others.

With respect to this endorsement, the following are added to the **Definitions** Section of the Policy:

> “Open roof” means any roof or section of a roof where the protective covering such as shingles, tar, and felt paper has been removed, leaving the building and or the interior of the structure exposed.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - ROOFING MEMBRANE, TORCH, AND TORCH DOWN OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to “bodily injury”, “property damage”, or, if provided, “personal and advertising injury” arising out of, contributed to, or in any way related to any ongoing or completed operations involving:

1. Hot tar, wand, open flame, torch, heat applications, hot membrane roofing, or any other type of membrane roofing.

This exclusion applies even if negligence or other wrongdoing is alleged in the supervision, hiring, employment, training, investigation, reporting to authorities, or monitoring of others by an insured if the “occurrence” which caused the “bodily injury”, “property damage” or “personal and advertising injury”, if offered, is in any way related to any of the operations described in Paragraph **1.** above.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - SNOW AND ICE REMOVAL

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

> This insurance does not apply to any “bodily injury”, “property damage”, or “personal and advertising injury” arising out of, related to, contributed to by, or in any way involving snow removal, ice removal, snow or ice plowing operations, or any actual or alleged failure to remove snow or ice.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - WILDFIRE

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to any “bodily injury”, “property damage”, or “personal and advertising injury” arising out of, directly or indirectly, caused by, involving, or in any way related to any “wildfire”.

This exclusion applies, but is not limited to, any loss, cost, or expense to extinguish, fight, contain, or clean up debris arising out of “wildfire”. Additionally, this exclusion applies to any error or omission, deficiency of tests performed, consultation given, advice given, evaluation made, or the rendering of or failure to render any professional service involving fire mitigation or erosion control involving, in any way, any damage or loss resulting from “wildfire”.

This exclusion applies even if the claims or “suit” against the insured allege or specify negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by the insured.

The following is added to the **Definitions** Section of the Policy:

"Wildfire" means an uncontrolled fire that originates in an area of combustible vegetation and includes all smoke, heat, soot, erosion, or fumes associated with or resulting from the fire. "Wildfire" includes, but is not limited to, brush fire, bush fire, desert fire, forest fire, grass fire, hill fire, peat fire, vegetation fire, escaped prescribed or controlled fires, and escaped wildland fires.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1073 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - WORK OVER SPECIFIED HEIGHT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

## SCHEDULE

| | |
|---|---|
| **Specified Height:** | 5 stories |

The following exclusion is added to this Policy:

This insurance does not apply to:

1. "Bodily injury", "property damage", or, if provided, "personal and advertising injury" arising out of ongoing operations performed, by you or on your behalf, on any building or structure above the amount of feet or stories specified in the Schedule above; or

2. "Bodily injury", "property damage", or, if provided, "personal and advertising injury" included in the "products-completed operations hazard" and arising out of "your work" performed on any building or structure above the amount of feet or stories specified in the Schedule above.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - TAINTED DRYWALL MATERIAL

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to:

"Bodily injury", "property damage", or, if provided, "personal and advertising injury" arising directly or indirectly out of, contributed to by, or in any way related to:

**1.** The design, manufacture, construction, fabrication, preparation, sale, use, installation, application, maintenance, or repair, including remodeling, service, correction, or replacement, of any "tainted drywall material," including the application or use of sealants, primers, accessories, flashings, coatings, caulking, or sealants in connection with "tainted drywall material"; or

**2.** "Your product" or "your work" with respect to any material, component, fixture, or feature of any structure if "tainted drywall material" is used on the part of that structure containing that component, fixture or feature.

This exclusion applies regardless of any cause or event that contributes concurrently or in any sequence with the injury, loss, or damage.

The following is added to the **Definitions** Section of the Policy:

"Tainted drywall material" means any drywall, plasterboard, sheetrock, wall board, greenboard, blue board, gypsum board, or any gypsum containing building materials which:

**1.** Emits, or has the potential to emit, sulfuric odors, sulfur-containing gas, or sulfuric-containing acids;

**2.** Causes or contributes to corrosion or oxidation of any matter;

**3.** Contains arsenic, strontium, or any other radioactive compounds;

**4.** Contains fly ash or any other material derived from coal-fired power plants;

**5.** Contains gypsum that is less than 70.0 percent weight percent $CaSO4 \cdot 2H20$; or

**6.** Contains manufacturing by-products, asbestos, or waste. Waste includes materials to be recycled, reconditioned, or reclaimed.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# DESIGNATED CONSTRUCTION PROJECT(S) GENERAL AGGREGATE LIMIT WITH AGGREGATE CAP

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

## SCHEDULE

| | |
|---|---|
| **Designated Construction Project(s) Aggregate Cap:** | $5,000,000 |

**1.** For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under Section **I** - Coverage **A**, and for all medical expenses caused by accidents under Section **I** - Coverage **C**, which can be attributed only to operations at a single designated construction project:

**a.** A separate Designated Construction Project General Aggregate Limit applies to each single designated construction project, and that limit is equal to the amount of the General Aggregate Limit shown in the Declarations.

**b.** The Designated Construction Project(s) Aggregate Cap is the most we will pay for the sum of all damages under Coverage **A,** except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard", and for medical expenses under Coverage **C** regardless of the number of:

**(1)** Insureds;

**(2)** Claims made or "suits" brought; or

**(3)** Persons or organizations making claims or bringing "suits".

**c.** Any payments made under Coverage **A** for damages or under Coverage **C** for medical expenses shall reduce the Designated Construction Project General Aggregate Limit for that designated construction project. Such payments shall not reduce the General Aggregate Limit shown in the Declarations nor will they reduce any other Designated Construction Project General Aggregate Limit for any other designated construction project.

**d.** The limits shown in the Declarations for Each Occurrence, Damage To Premises Rented To You and Medical Expense continue to apply. However, instead of being subject to the General Aggregate Limit shown in the Declarations, such limits will be subject to the applicable Designated Construction Project General Aggregate Limit.

**e.** The Designated Construction Project(s) Aggregate Cap shown in the Schedule above is the most we will pay for the sum of all Designated Construction Project General Aggregate Limits and the General Aggregate Limit shown in the Declarations regardless of the number of:

**(1)** Insureds,


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**(2)** Claims made or “suits” brought, or

**(3)** Persons or organizations making claims or bringing “suits”.

**2.** For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under Section **I** - Coverage **A**, and for all medical expenses caused by accidents under Section **I** - Coverage **C,** which cannot be attributed only to ongoing operations at a single designated construction project:

**a.** Any payments made under Coverage **A** for damages or under Coverage **C** for medical expenses shall reduce the amount available under the General Aggregate Limit shown in the Declarations or the Products/Completed Operations Aggregate Limit, whichever is applicable; and

**b.** Such payments shall not reduce any Designated Construction Project General Aggregate Limit.

**3.** When coverage for liability arising out of the "products-completed operations hazard" is provided, any payments for damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard" will reduce the Products/Completed Operations Aggregate Limit shown in the Declarations, and not reduce the General Aggregate Limit shown in the Declarations nor the Designated Construction Project General Aggregate Limit.

**4.** The provisions of Section **III** - Limits Of Insurance not otherwise modified by this endorsement shall continue to apply as stipulated.

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# AMENDMENT - PREMIUM AUDIT CONDITION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The Premium Audit condition of the Policy is deleted in its entirety and replaced by the following:

**A.** We will compute all premiums for this Policy in accordance with our rules and rates.

**B.** The premium shown in the Declarations page is a Deposit Premium only and shall be credited toward the Final Earned Premium calculated by premium audit. This Final Earned Premium shall be due 30 days after the premium audit is completed. If the Final Earned Premium calculated for an audit period is less than the Deposit Premium paid, as shown in the Declarations page of this Policy, we shall retain no less than the Minimum Retained Premium as described in the Minimum and Deposit Premium endorsement of this Policy. Final Earned Premium means the Fully Earned Premium, as described in the Minimum and Deposit Premium endorsement of this Policy, in addition to any additional premium due as a result of the premium audit.

**C.** The Company may examine and audit the Named Insured's books and records at any time during the Policy Period and extensions thereof and within three years after the final termination of this Policy as far as they relate to the subject matter of this insurance. The Named Insured must keep records of the information we need for premium computation and send us copies at such times as we may request. Failure to supply such records upon request will be deemed a breach of condition and this Policy, and any in-force policy we issued to you will be subject to cancellation for breach of conditions.

**D.** We will attempt to contact you or your insurance agent or broker to conduct an audit. Should any attempt to conduct an audit fail due to you or your insurance agent or broker’s noncooperation, we have the express right to calculate a final audit premium based on the information available to us. If final premium audits calculated without your cooperation and/or assistance result in additional premium owed to us, you are obligated to and must pay that additional premium immediately.

**E.** If you disagree with the results of the final premium audit, you may contest the final premium audit. However, you must do so in writing and you must include verifiable documentation that clearly supports the dispute and allows for accurate premium computation. You must contest the results of the premium audit within 30 days of the final premium audit. Should you fail to provide written notice of your dispute along with verifiable documentation supporting your dispute within this time frame, such failure shall constitute a waiver of any further ability to dispute and shall constitute an agreement with the final premium audit result.

**F.** The Named Insured must keep records of the information we need for premium audit and send us copies at such times as we may request. Failure to supply such records upon request will be



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

deemed a breach of condition and this Policy, and any in-force policy we issued to you will be subject to cancellation for breach of conditions.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1092 04 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# ABSOLUTE EXCLUSION - AUTO, AIRCRAFT OR WATERCRAFT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The exclusion **Aircraft, Auto, or Watercraft** in the Policy is deleted in its entirety and the following exclusion is added to this Policy:

This insurance does not apply to “bodily injury”, “property damage”, or “personal and advertising injury” arising, directly or indirectly, involving, or in any way related to the actual or alleged use, maintenance, ownership, damage to, or presence of any “auto”, aircraft, or watercraft. Use includes operation and “loading and unloading”.

This exclusion applies regardless of whether any other cause, event, material, situation, or product contributed concurrently or in any sequence to any “bodily injury”, “property damage”, or “personal and advertising injury” arising out of any “auto”, aircraft, or watercraft. Further, this exclusion also applies to any claims against the insured involving allegations of negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by the insured involving any “auto”, aircraft, or watercraft.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1095 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - SPECIFIED ONGOING OR COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

## SCHEDULE

| |
|---|
| **Exceptions to the list of excluded Specified Ongoing or Completed Operations included in this endorsement:** |
| **Additional Excluded Specified Ongoing or Completed Operations:** |

The following exclusion is added to this Policy:

This insurance does not apply to any "bodily injury", "property damage", or "personal and advertising injury" arising out of, related to, caused by, contributed to by, or in any way connected with any of the below specified operations:

**a.** Crane Rental – With or Without Operators;
**b.** Crane Maintenance and/or Repair;
**c.** Crop Spraying;
**d.** Dam or Reservoir Construction;
**e.** Dike, Levee or Revetment Construction;
**f.** Elevator or Escalator Inspection, Certification, Installation, Servicing, and/or Repair;
**g.** Asbestos or Lead Abatement;
**h.** Freight Forwarders or Handlers;
**i.** Janitorial Services;
**j.** Logging and Lumbering;
**k.** Mining;
**l.** Nuclear Contractors, Including but not Limited to Storage, Transportation, and/or Removal of Nuclear Waste or Products;
**m.** Off-Shore Wind Farms Construction;
**n.** Playground Equipment Inspection, Certification, Installation, Servicing, and/or Repair;
**o.** Security Guard and Patrol Services;
**p.** Sewage Disposal;
**q.** Street Cleaning;
**r.** Traffic Control and Flagging;
**s.** Traffic Sign and Barricade Installation, Repair, and/or Rental; or
**t.** Any operations specified as Additional Excluded Specified Ongoing or Completed Operations in the Schedule above.

This exclusion applies regardless of whether the specified operations were completed or remained ongoing at the time of the "bodily injury", "property damage", or "personal and advertising injury".

All other terms and conditions of the Policy remain unchanged.


Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# LIMITATION OF COVERAGE TO SCHEDULED DESIGNATED CLASSES

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

## SCHEDULE

| CLASS DESCRIPTION(S) |
| --- |
| Plumbing - Commercial or Industrial; General Contractors – Subcontracted Work - Custom Homes; General Contractors – Subcontracted Work - Commercial or Industrial; Plumbing - Residential |

The following limitation is added to this Policy:

This insurance applies only to “bodily injury”, “property damage”**,** and, if provided**,** “personal and advertising injury” arising directly out of activities or operations that are listed in the Schedule above. If any operations or activities are not described, they are not covered.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1154 05 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - AIRCRAFT PRODUCTS AND GROUNDING

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

**1.** This insurance does not apply to "bodily injury" or "property damage" arising directly or indirectly out of, involving, or in any way related to:

**a.** Any "aircraft product"; or

**b.** The "grounding" of any aircraft; or

**c.** "Your work" on aircraft (including missile or spacecraft, and any ground support or control equipment).

The following is added to the **Definitions** Section of this Policy:

"Aircraft product" means:

**a.** Aircraft (including missile or spacecraft, and any ground support or control equipment used therewith);

**b.** Any article furnished by you or on your behalf and installed in an aircraft or used in connection with an aircraft or for spare parts for an aircraft including ground handling tools and equipment;

**c.** Any of "your products" used at an airport for the purpose of guidance, navigation, or direction of aircraft;

**d.** Training aids, instructions, manuals, blueprints, engineering, or other data or advice and services and labor relating to such aircraft, articles, or products that you or any other person or organization on your behalf:

**(1)** Sold, handled, or distributed; or

**(2)** Manufactured, assembled, or processed:

**(a)** According to specifications, plans, suggestions, orders, or drawings provided by you or on your behalf; or

**(b)** With tools, machinery, or equipment furnished to such persons or drawings provided by you or on your behalf.



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

"Grounding" means the withdrawal of any aircraft, whether manned or unmanned, from flight operations or the imposition of speed, passenger, or load restrictions on such aircraft due to actual or alleged defect, condition, or fault with such aircraft, regardless of the cause of such defect, condition, or fault.

All other terms and conditions of the Policy remain unchanged.



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY**

# EXCLUSION - INJURY TO WORKER

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

The **Employer's Liability** exclusion found in the **Exclusions** section of the Policy is deleted and replaced by the following:

**A.** This insurance does not apply to any claim or "suit" for "bodily injury" sustained by**:**

**1.** Any independent contractor or "subcontractor"; or

**2.** Any "employee," "leased worker," "temporary worker," "volunteer worker" or help of any individual or entity described in **1.** above; or

**3.** The spouse, child, parent, brother, sister, or other family member of any individual or entity described in **A. 1.** or **2.** above, as a consequence of such individual or entity's injury.

This exclusion applies regardless of who retained, hired, engaged, or selected the individual or entity described in **A. 1.** or **2.** above. This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by an insured.

**B.** Further, this insurance does not apply to any claim or "suit" for "bodily injury" sustained by:

**1.** An "employee", "volunteer worker", or "temporary worker" of the insured arising out of and in the course of employment by the insured or in any way related to the conduct of the insured's business;

**2.** Any other person who performs labor in any capacity for or on behalf of any insured, with or without any form of compensation; or

**3.** The spouse, child, parent, brother, sister, or other family member of any individual or entity described in **B. 1.** or **2.** above, as a consequence of such individual or entity's injury.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by an insured.

This exclusion applies to any liability assumed under an "insured contract".

For the purposes of this endorsement, the following is added to the **Definitions** section of the Policy:

"Subcontractor" means any person, entity, or organization that is not the employee of an insured and does work or perform services on behalf of or for an insured hired directly by the insured or someone hired or contracted on behalf of someone working on behalf of the insured.



**LSIC-IL-1160 08 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

All other terms and conditions of this Policy remain unchanged.



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# AMENDED DEDUCTIBLE - INDEPENDENT CONTRACTOR OR SUBCONTRACTOR CONDITIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

## SCHEDULE

| Condition | Deductible Amount |
|---|---|
| Failure to meet Independent Contractor Or Subcontractor Special Conditions | $25,000 |

**1.** The following condition is added to the Policy:

**a. Independent Contractor or Subcontractor Special Conditions**

Regarding any claim or "suit" as a result of "bodily injury", "property damage", and, if offered, "personal and advertising injury" resulting from, arising out of, involving, or alleging to involve an independent contractor or "subcontractor" of an insured**,** the following condition applies:

Prior to the date of the "occurrence" giving rise to the claim or "suit":

**(1)** The Named Insured obtains certificates of insurance from each independent contractor or "subcontractor" evidencing coverage with an insurer with a rating of at least an "A-" financial rating by A.M. Best, with limits of liability equal to or greater than the limits of insurance provided by this Policy.

The insurance provided by the policy of the certificate of insurance described above must provide equal to or greater than the coverage provided by this Policy, including but not limited to the following requirements:

**(a)** Must contain Additional Insured - Owners, Lessees or Contractors (Insurance Services Office CG 2010) and Additional Insured - Owners, Lessees or Contractors - Completed Operations (Insurance Services Office CG 2037) or their equivalent;

**(b)** Must contain Waiver of Transfer of Rights of Recovery Against Others to Us (Insurance Services Office CG 2404) or its equivalent;

**(c)** Must contain Primary and Non-Contributory - Other Insurance Condition Endorsement (Insurance Services Office CG 2001) or its equivalent; and

**(d)** Must contain at least thirty (30) Days Notice of Cancellation for additional insureds.

**(2)** The Named Insured obtains a fully executed written indemnity agreement from each independent contractor or "subcontractor" holding you harmless for all liabilities, including



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

supplementary payments, arising from the work performed by the independent contractor or "subcontractor"; and

**(3)** The Named Insured obtains proof that each independent contractor or "subcontractor" has Employers' Liability and Workers' Compensation insurance as required by the state in which work is performed.

You must maintain records evidencing compliance with items **(1)**, **(2)**, and **(3)** above for ten years from the expiration date of this Policy.

**2.** If any of the above conditions are not satisfied, a deductible equal to an amount shown in the Schedule above will apply to any claim or "suit" under this Policy seeking damages for "bodily injury", "property damage", and, if offered, "personal and advertising injury" arising out of the work performed by the independent contractor or "subcontractor" for the insured. This deductible replaces the Per Occurrence Deductible shown in the Declarations page of the Policy when this amended deductible applies. The deductible amounts apply to damages and all legal and loss adjustment expenses.

**3.** Insurance coverage maintained by the independent contractor or "subcontractor" shall be primary and this Policy shall be excess of the Limits of Liability of such insurance, notwithstanding the language of the **Other Insurance** provisions of this Policy.

For the purposes of this endorsement, the following is added to the **Definitions** Section of the Policy:

"Subcontractor" means any person, entity, or organization that is not the employee of an insured and does work or performs services on behalf of or for an insured hired directly by the insured; or someone hired or contracted on behalf of someone working on behalf of the insured.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1162 08 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - PERSONAL OCCUPANCY OF BUSINESS LOCATION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART

The following is added as an exclusion to this Policy:

It is hereby understood and agreed that this Policy provides coverage solely for business operations of the Insured.

This insurance does not apply to:

Any “bodily injury”, “property damage”, or “personal and advertising injury” that is related to, involves, or arises from, directly or indirectly, “personal occupancy” of any “business location”. Further, this exclusion shall extend to any liability that may arise as a result of “personal occupancy” that is in any way proximate or related to a “business location”.

This exclusion applies even if negligence or other wrongdoing is alleged in the supervision, hiring, employment, training, investigation, reporting to authorities, or monitoring of others by an insured if the “occurrence” which caused the “bodily injury”, “property damage” or “personal and advertising injury” is in any way related to “personal occupancy” of a “business location”. Additionally, this exclusion applies if negligence or other wrongdoing is alleged in the storage, security, or use of materials, items, or equipment stored at a place that is in any way related to “personal occupancy” of a “business location”.

Finally, this insurance does not apply to “bodily injury”, “property damage”, or “personal and advertising injury” sustained by any non-business guest of any Insured at a “business location”.

For the purposes of this exclusion, the following Definitions apply:

“Business location” means:

1. The insured’s address(es) as shown in the Declarations of the Policy;
2. Any premises or location, other than an active work site, where the Insured stores business materials and equipment;
3. Any premises or location from which the Insured operates the business;
4. Any premises or location from which the Insured has an office; or
5. Any location related to or proximate to the aforementioned locations in **1.** – **4.** above.

“Personal occupancy” means any habitation, home, apartment, or other dwelling occupied by, resided in by, rented by, visited by, or otherwise used or lived in by:

1. the insured;
2. anyone leasing space from the insured;
3. the insured’s children, spouse, parent, sibling, or other family member; or
4. any friend, visitor, acquaintance, or associate of **1.** - **3.** above



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

for any reason other than the commercial operations of the Named Insured whose business operations are covered by this Policy.

All other terms and conditions of the Policy remain unchanged.



**LSIC-IL-1163 11 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - STORAGE OF HAZARDOUS MATERIALS, SUBSTANCES, OR PROPERTY

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED-OPERATIONS LIABILITY COVERAGE PART

The following exclusion is added to this Policy:

This insurance does not apply to “bodily injury”, “property damage”, or “personal and advertising injury” arising out of, directly or indirectly, related to, or otherwise involving any actual or alleged failure to secure, guard, appropriately store, or otherwise keep safe any actual or alleged “hazardous materials, substances, or other property”.

This exclusion applies regardless of whether any other cause, event, material, situation, or product contributed concurrently or in any sequence to any “bodily injury”, “property damage”, or “personal and advertising injury”.

Further, this exclusion applies to the negligent hiring, employment, training, supervision, or retention of any Insured, “employee”, agent or other person with respect to such storage and regardless of whether such storage of “hazardous materials, substances, or other property” was conducted by you, on your behalf, for yourself, or for others.

For the purposes of this endorsement, the following is added to the **Definitions** section:

“Hazardous materials, substances, or other property” means:

a. Any material, mixture, article, waste, or property that is classified, defined, listed, labeled, or regulated as hazardous, dangerous, toxic, flammable, combustible, explosive, oxidizing, reactive, corrosive, radioactive, biohazardous, or as a pollutant or contaminant under any applicable federal, state, provincial, territorial, tribal, or local statute, regulation, code, standard, or guidance, including without limitation those of transportation, workplace safety, environmental protection, fire, building, health, or radiation authorities; and
b. Any substance or article that is capable of causing or materially increasing the risk of fire, explosion, deflagration, detonation, spontaneous heating, illness, pressure release, corrosion, toxicity, asphyxiation, infection, contamination, pollution, environmental impairment, or similar harmful effects by its physical, chemical, biological, or radiological properties, or by the condition, quantity, or manner in which it is stored, handled, or kept.
c. “Hazardous materials, substances, or other property” includes, but is not limited to:
    1. Acids and bases;
    2. Adhesives and resins;
    3. Aerosols;
    4. Alcohol;
    5. Asbestos-containing materials;
    6. Battery cells and packs (including lithium-ion and lithium-metal);
    7. Cannabis concentrates;
    8. Compressed or liquefied gases (including cryogens);
    9. Corrosives;



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

10. Explosives, propellants, and pyrotechnics;
11. Fireworks and ammunition;
12. Fuels and oils;
13. Lead;
14. Medical or biohazardous waste;
15. Medication, prescription or otherwise;
16. Mercury;
17. Oxidizers;
18. Paints and coatings;
19. PCBs;
20. Per- and polyfluoroalkyl substances (PFAS);
21. Peroxides;
22. Pesticides and fertilizers;
23. Pool chemicals; pharmaceuticals and controlled substances;
24. Radioactive sources or materials.
25. Respirable crystalline silica; and
26. Solvents;

All other terms and conditions of the Policy remain unchanged.



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - NEW RESIDENTIAL CONSTRUCTION WITH SPECIFIED EXCEPTIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

**SCHEDULE I**

| | |
|---|---|
| **A. Designated States:** | AL, AK, AR, CT, DE, DC, GA, IL, IN, IA, KS, KY, ME, MD, MA, MI, MN, MS, MO, MT, NE, NH, NM, NC, ND, OH, OK, RI, SD, TN, UT, VT, VA, WV, WI, WY |
| **B. Designated Number of Homes and/or Units:** | 100 |

**SCHEDULE II**

| | |
|---|---|
| **A. Designated States:** | NJ, PA, TX |
| **B. Designated Number of Homes and/or Units:** | 25 |

The following exclusion is added to this Policy:

This insurance does not apply to “bodily injury”, “property damage”, or “personal and advertising injury” arising directly or indirectly out of, resulting from, caused by, contributed to by, or in any way related to any "new construction” of any of the following:

**1.** “Condominium”;

**2.** “Cooperative”;

**3.** “Rowhome”;

**4.** “Single-family home”;

**5.** “Townhouse”; or

**6.** “Tract Home”.

This exclusion shall not apply to:

**a.** “Your work” or “your product” performed or located in the Designated States listed in Schedule I, A. above on a “location” that contains less than or equal to the Designated Number of Homes and/or Units listed in Schedule I, B. above; or

**b.** “Your work” or “your product” performed or located in the Designated States listed in Schedule II, A. above on a “location” that contains less than or equal to the Designated Number of Homes and/or Units listed in Schedule II, B. above.



**LSIC-IL-1173 10 25** Includes copyrighted material of Insurance Services Office, Inc., with its permission.

For the purposes of this endorsement, the following are added to the **Definitions** section of the Policy:

“Apartment building structure” means a multi-family structure of units designed to be leased or rented in which all units are owned by the same person or organization and not individually titled.

“Condominium” means:

**a.** An estate in real property where there is an undivided interest in common in a portion of real property, coupled with a separate interest in space called a unit, the boundaries of which are described on a recorded final map, parcel map, or condominium plan; or

**b.** Real property, portions of which are designated for separate ownership to which individual owners hold title to the condominium unit and the remainder of the real property is designated for common ownership, solely by the owners of those designated portions.

“Cooperative” means:

**a.** A type of multiple ownership of real property in which the residents of a multi-unit housing complex own shares in the cooperative corporation that owns the property, giving each resident the right to occupy a specific unit; or

**b.** Dwelling units in a multi-dwelling complex in which each owner has an interest in the entire complex and a lease of their own unit; or

**c.** A common interest development which is a stock cooperative.

“Location” means a single parcel of land, or contiguous parcels of land, under the ownership, lease, or control of the same person, entity, or organization, or group of persons, entities, or organizations, that are considered or share the characteristics of the same project or development.

“New construction” means the construction from the ground up of new buildings or structures and prior to the issuance of a certificate of occupancy. “New construction” does not include renovation operations to an existing building(s) which began after the date of initial occupancy.

“Rowhome” means a series of five or more individual housing units sharing common sidewalls between them, without co-ownership of other parts or portions of any building, structure, or land in addition to the shared sidewalls between units.

“Single-family home” means a detached, free-standing structure with single-family residential occupancy and a single deed for the structure. A “single-family home” may include a duplex, triplex, or fourplex if there is a single deed for the structure. “Single-family home” does not include a “condominium”, “townhouse”, or a house or houses in a “tract home” development.

“Townhouse” means any individually deeded single-family residential unit which is attached by one or more shared walls with another single-family residential unit.

“Tract home” means any individual or freestanding houses which share common or similar design elements, floor plans, blueprints, and/or architectural details on the same parcel, adjacent parcels or parcels so located within one geographic area to be considered a single project.

All other terms and conditions of the Policy remain unchanged.



 Includes copyrighted material of Insurance Services Office, Inc., with its permission.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# EXCLUSION - ARTIFICIAL INTELLIGENCE

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following Exclusion is added to the Policy:

This insurance does not apply to any “bodily injury”, “property damage”, or “personal and advertising injury” arising out of, directly or indirectly, involving, attributable to, or in any way related to “artificial intelligence”.

This exclusion applies whether any “artificial intelligence” was the precipitating cause and whether any other cause contributed concurrently or in any sequence to the “bodily injury”, “property damage”, or “personal and advertising injury”.

Further, this exclusion applies regardless of whether such “artificial intelligence” was utilized directly by any insured or indirectly through any contractor, vendor, platform, application, plugin, embedded feature, or API.

For the purposes of this endorsement, the following definitions apply:

“Artificial intelligence” means any artificial intelligence, machine learning, or other computational model or system that is designed or used to generate, compose, produce, or materially transform content, including but not limited to text, code, images, audio, video, or other data or media, in response to prompts, queries, instructions, training, or other inputs. “Artificial intelligence” includes but is not limited to any system commonly described as a large language model, foundation model, diffusion model, or generative adversarial network.

All other terms and conditions of the Policy remain unchanged.